



**AGENDA
CITY OF ALLEN
CITY COUNCIL REGULAR MEETING
TUESDAY, OCTOBER 22, 2024 – 7:00 PM
CITY COUNCIL CHAMBERS
ALLEN CITY HALL
305 CENTURY PARKWAY
ALLEN, TEXAS 75013**

1. Call to Order and Announce a Quorum is Present.

2. Pledge of Allegiance.

3. Public Recognition.

- 3.1 Presentation of a Proclamation by the Office of the Mayor.
- Recycles Day

4. Citizens' Comments.

[The City Council invites citizens to speak to the Council on any topic not on the agenda or not already scheduled for Public Hearing. Prior to the meeting, please complete a "Public Meeting Appearance Card" and present it to the City Secretary. The time limit is three minutes per speaker, not to exceed a total of fifteen minutes for all speakers.]

5. Consent Agenda.

[Routine Council business. Consent Agenda is approved by a single majority vote. Items may be removed for open discussion by a request from a Councilmember or member of staff.]

- 5.1 Approve minutes of the October 8, 2024, Regular City Council Meeting.
- 5.2 Adopt an Ordinance amending the Code of Ordinances of the City of Allen Chapter 9, "Motor Vehicles and Traffic," Section 9-2 "Definitions," Section 227 "Parking of Trucks, Tractors, Commercial Vehicles, Etc., In Residential Districts," removing Section 229 "Parking of Commercial Vehicles," and adding new Article, Section 9-229 "Time Limitation for Unattended Motor Vehicles," Section 9-230 "Parking of Vehicles with Expired or Invalid License Plates," and Chapter 13 "Streets and Sidewalks," Section 13-7 "Obstructions Within the Public Rights-of-Way."
- 5.3 Adopt an Ordinance amending the Code of Ordinances of the City of Allen Chapter 9, "Motor Vehicles and Traffic," Article XIII "Pedestrian Safety" to add regulations for pedestrian safety.
- 5.4 Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, to continue funding the position of a Crime Victim Advocate.

- 5.5 Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, to continue funding the position of a Digital Forensics Examiner.
- 5.6 Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, Texas Homeland Security Administrative Agency for funding to purchase SWAT Ballistic Vests and Gas Mask Equipment under the Urban Area Security Initiative (UASI) Grant Program for \$102,439.
- 5.7 Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, for funding to purchase a Virtual Reality Simulator for \$70,000.

6. Regular Agenda.

- 6.1 Authorize the City Manager to execute an agreement with Brinkley Sargent Wiginton Architects for Design Development and Construction Documents for the new Allen Police Department Headquarters for \$2,262,615.
- 6.2 Authorize the City Manager to execute an agreement for Meet and Confer with the Allen Firefighters Association, IAFF Local 3453.
- 6.3 Authorize the City Manager to execute an agreement for Meet and Confer with the Allen Police Association.

7. Other Business.

[Council announcements regarding local civic and charitable events, meetings, fundraisers, and awards.]

7.1 Calendar.

- Oct. 21 - Nov. 1 - Early Voting for the Nov. 5 General and Special Elections.
- Nov. 2 @ 10 a.m. - Grand Opening of Fire Station No. 6 (969 Ridgeview Drive)
- Nov. 2 @ 8 a.m. - 12 p.m. - Allen Recycles Day - Allen City Hall (305 Century Parkway)
- Nov. 5 - Election Day

7.2 Items of Interest.

8. Executive Session (As needed).

Legal, Section 551.071.

As authorized by Section 551.071(2) of the Texas Government Code, the Workshop Meeting and/or the Regular Agenda may be Convened into Closed Executive Session for the Purpose of Seeking Confidential Legal Advice from the City Attorney on any Agenda Item Listed Herein. (Closed to Public as Provided in the Texas Government Code.)

- 8.1 Pursuant to Texas Government Code Sections 551.087 (1) and (2) for Economic Development Negotiations: Discuss TIF Zone No. 4 Economic Development and Reimbursement Agreement by and between the City of Allen, Texas and Billingsley LD, Ltd., for the Sloan Corners Project located at the southwest corner of State Hwy. 121 and US Hwy. 75, Allen, Texas.

8.2 Reconvene and Consider Action on Items Resulting from Executive Session.

9. **Adjournment.**

This notice was posted at Allen City Hall, 305 Century Parkway, Allen, Texas, at a place convenient and readily accessible to the public at all times. Said notice was posted on Friday, October 18, 2024, at 5:00 p.m.

Shelley B. George, City Secretary

Allen City Hall is wheelchair accessible. Access to the building and special parking are available at the entrance facing Century Parkway. Requests for sign interpreters or special services must be received forty-eight (48) hours prior to the meeting time by calling the City Secretary at 214.509.4105.

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION
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AGENDA DATE: October 22, 2024

AGENDA CAPTION: Approve minutes of the October 8, 2024, Regular City Council Meeting.

STRATEGIC PLANNING GOAL: Engaged and Connected Allen Community.

ATTACHMENT(S)

[Minutes](#)

ALLEN CITY COUNCIL

REGULAR MEETING

OCTOBER 8, 2024

Present:

Baine L. Brooks, Mayor

Allen City Council:

Ben Trahan, Mayor Pro Tem

Michael Schaeffer

Tommy Baril

Ken Cook

Chris Schulmeister (absent)

Carl Clemencich

City Staff:

Eric Ellwanger, City Manager

Eric Strong, Deputy City Manager (absent)

Tim Dentler, Assistant City Manager

Rebecca Vice, Assistant City Manager

Shelley B. George, City Secretary (absent)

Chelsey Aprill, Director, Public and Media Relations

Rocio Gonzalez, Deputy City Secretary

Maddie Hanson, Administrative Support Services Specialist

Pete Smith, City Attorney

Workshop Session

1. Call to Order and Announce a Quorum is Present

With a quorum of the Allen City Council present, the Workshop of the Allen City Council was called to order by Mayor Brooks at 6:00 p.m. on Tuesday, October 8, 2024, in the Basement Meeting Rooms A and B of Allen City Hall, 305 Century Parkway, Allen, Texas.

2. Discussion Items

2.1 Proposed Ordinance for Pedestrians on Medians.

2.2 Amendment to Parking Ordinance.

2.3 Committee Updates from City Council Liaisons.

2.4 Questions on Current Agenda.

3. Adjourn to Regular Meeting

With no further discussion, Mayor Brooks adjourned the Workshop of the Allen City Council at 6:38 p.m. on Tuesday, October 8, 2024, in Basement Meeting Rooms A and B of Allen City Hall, 305 Century Parkway, Allen, Texas.

**ALLEN CITY COUNCIL
REGULAR MEETING
OCTOBER 8, 2024**

Regular Meeting

1. Call to Order and Announce a Quorum is Present

With a quorum of the Allen City Council present, the Regular Meeting of the Allen City Council was called to order by Mayor Brooks at 7:00 p.m. on Tuesday, October 8, 2024, in the Council Chambers of Allen City Hall, 305 Century Parkway, Allen, Texas.

2. Pledge of Allegiance

Mayor Brooks asked everyone to join him and the Allen City Council in a moment of silence.

3. Public Recognition

- Proclamation: Manufacturing Month
- Proclamation: Skate America Days

3.2 Recognition of former members of Board, Commission and Committees for their service to the City of Allen.

- Philip Brewer, Parks and Recreation Board, 2021-2023
- Veronica Yost, Community Engagement Advisory Board, 2022-2024
- John Holley, Parks and Recreation Board, 2012-2024
- Isaac Williams, BOA, 2021-2024
- Ana Gonzalez, Community Engagement Advisory Board, 2022-2024
- Victoria States, Keep Allen Beautiful Board, 2022-2024
- Sandy Wittsche, Public Art Committee, 2014-2024
- Geoben Johnson III, Parks and Recreation Board, 2016-2024
- Maroba Zoeller, Library Board, 2018-2024
- Steve Chisholm, Keep Allen Beautiful Board, 2018-2024
- Pamela Ackerman, Animal Shelter Advisory Committee, 2018-2024
- Inga Fredrickson, Community Engagement Advisory Board, 2022-2024
- Gary Rodenbaugh, Collin County Appraisal District Board of Directors, 2000-2023
- Sam Clark, Downtown Design Review Board, 2023-2024
- Jill Kelley, Parks and Recreation Board, 2023-2024
- Michael Schaeffer, EDC, 2012-2024
- Ken Cook, Planning and Zoning Commission, 2021-2024

4. Citizens' Comments

Amy Gnadt, 1814 Childress Lane, Allen, Texas, spoke regarding the Allen ISD school bond.

5. Consent Agenda

MOTION: Upon a motion made by Councilmember Clemencich and a second by Councilmember Schaeffer, the Council voted six (6) for and one (0) opposed to approve all items on the Consent Agenda as follows:

5.1 Approve minutes of the September 24, 2024, Regular City Council Meeting.

**ALLEN CITY COUNCIL
REGULAR MEETING
OCTOBER 8, 2024**

- 5.2 **Discuss, consider and take action to approve an agreement for professional collection services for unpaid closed utility accounts with Linebarger Goggan Blair & Sampson, LLP, as special counsel to perform all legal services necessary to collect the City's unpaid closed utility accounts; and Resolution approving said agreement and authorizing the City Manager to execute said agreement.**

RESOLUTION NO. 4114-10-24(R): A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, APPROVING AN AGREEMENT FOR PROFESSIONAL COLLECTION SERVICES FOR UNPAID CLOSED UTILITY ACCOUNTS WITH LINEBARGER GOGGAN BLAIR & SAMPSON, LLP; PROVIDING CERTAIN FINDINGS; AND PROVIDING AN EFFECTIVE DATE.

- 5.3 **Consider and take action to approve an agreement for delinquent municipal court fines and fees professional collection services with Linebarger Goggan Blair & Sampson, LLP, as special counsel to perform all legal services necessary to collect unpaid fines, fees and court costs as provided in the Texas Code of Criminal Procedure, Article 103.0031; and Resolution approving said agreement and authorizing the City Manager to execute the Agreement on behalf of the City.**

RESOLUTION NO. 4115-10-24(R): A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, APPROVING AN AGREEMENT FOR COURT FINES AND FEES PROFESSIONAL COLLECTION SERVICES WITH LINEBARGER GOGGAN BLAIR & SAMPSON, LLP; PROVIDING CERTAIN FINDINGS; AND PROVIDING AN EFFECTIVE DATE.

- 5.4 **Adopt a Resolution authorizing the provisions of Article 103.0031 of the Texas Code of Criminal Procedure imposing a collection fee of thirty-percent (30%) to defray the costs of collection on delinquent fines, fees, and costs imposed by the City of Allen, Texas.**

RESOLUTION NO. 4116-10-24(R): A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, AUTHORIZING AND IMPOSING A COLLECTION FEE AS PROVIDED BY ARTICLE 103.0031, TEXAS CODE OF CRIMINAL PROCEDURE, IN THE AMOUNT OF 30% OF DEBTS AND ACCOUNTS RECEIVABLE, SUCH AS UNPAID FINES, FEES, COURT COSTS, FORFEITED BONDS, AND RESTITUTION ORDERED PAID BY THE ALLEN MUNICIPAL COURT WHEN SUCH DEBT OR ACCOUNT RECEIVABLE IS MORE THEN 60 DAYS PAST DUE AND HAS BEEN REFERRED TO AN ATTORNEY OR PRIVATE VENDOR FOR COLLECTION; PROVIDING A REPEALING CLAUSE; PROVIDING A SEVERABILITY CLAUSE; AND PROVIDING FOR AN EFFECTIVE DATE.

- 5.5 **Authorize the City Manager to purchase an ambulance from Frazer Ltd. through the Houston-Galveston Area Council's (H-GAC) Cooperative Purchasing Program for \$348,450.**
- 5.6 **Authorize the City Manager to purchase Nutanix Hyperconverged Infrastructure from FreeIT Data Solutions, Inc., for the data center through the Texas Department of Information Resources for \$469,232.**
- 5.7 **Authorize the City Manager to execute a One-Year License Agreement with SideK Sports Management, LLC, as a member of the Major Arena Soccer League (MASL) to play all home games at Credit Union of Texas Event Center for the 2024-2025 Season.**

**ALLEN CITY COUNCIL
REGULAR MEETING
OCTOBER 8, 2024**

The motion carried.

6. Regular Agenda

7. Other Business

7.1 Calendar.

- October 12 @ 9 a.m. – Allen Community Band performing at Arbor Day Celebration, Reed Park.

7.2 Items of Interest.

- Councilmember Cook announced that tickets were available for the Boys and Girls Club annual Chrysalis Ball on Oct. 12 at 6 p.m. to be held at the Omni PGA in Frisco.
- Councilmember Baril announced that the Allen Public Library’s temporary location is open at Rountree Elementary. He also thanked staff for their efforts and working with Allen ISD.
- Councilmember Baril reminded everyone of the Allen Community Ice Rink and other great city amenities available in Allen.
- Mayor Pro Tem Trahan said that October is Cancer Awareness Month and that the NFL’s Crucial Catch campaign this year is to honor cancer survivors and those battling cancer. He offered prayers and support for anyone going through cancer or who has survived cancer.
- Mayor Brooks shared that October 12 is Fall Fest at Allen Heritage Village. There will be crafters market, Friends of the Library book sale, petting zoo, and more.

8. Executive Session

The Executive Session was not held.

8.1 Reconvene and Consider Action on Items Resulting from Executive Session.

9. Adjournment

Mayor Brooks adjourned the Regular Meeting of the Allen City Council at 7:27 p.m. on Tuesday, October 8, 2024.

These minutes were approved on the 22nd day of October 2024.

APPROVED:

Baine L. Brooks, MAYOR

ATTEST:

Shelley B. George, TRMC, CITY SECRETARY

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION
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AGENDA DATE: October 22, 2024

AGENDA CAPTION: Adopt an Ordinance amending the Code of Ordinances of the City of Allen Chapter 9, "Motor Vehicles and Traffic," Section 9-2 "Definitions," Section 227 "Parking of Trucks, Tractors, Commercial Vehicles, Etc., In Residential Districts," removing Section 229 "Parking of Commercial Vehicles," and adding new Article, Section 9-229 "Time Limitation for Unattended Motor Vehicles," Section 9-230 "Parking of Vehicles with Expired or Invalid License Plates," and Chapter 13 "Streets and Sidewalks," Section 13-7 "Obstructions Within the Public Rights-of-Way."

STAFF RESOURCE: Lee Battle, Community Enhancement Director;
Steve Dye, Chief of Police

PREVIOUS COUNCIL ACTION: 2594-2-07 Amended Section 9-227, Parking Of Trucks, Tractors, Etc., In Residential Districts
3596-8-18 Amended Section 9-227, Parking Of Trucks, Tractors, Etc., In Residential Districts

STRATEGIC PLANNING GOAL: Safe and Livable Community for All.

BACKGROUND

The Allen Police Department and the Community Enhancement Department have collaborated to improve enforcement activities for vehicle parking on neighborhood streets. This includes proposed ordinance amendments to improve safety and quality of life in neighborhoods. The City Council was briefed on these proposed amendments at the October 8 City Council Workshop. The proposed ordinance amendments include:

- 1) Requires vehicles parked on a on public roadway or right-of-way to have a valid license plate, temporary tag, and vehicle registration that is not more than 60 day out of date.
- 2) Creates a 5 day time limitation for unattended motor vehicles parked on public streets.
- 3) Creates limitations for placing storage pods and dumpsters on residential streets, and prohibits sports equipment in the street.
- 4) General definition and language clean-up.

A red-line version of the changes is include for your reference.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to adopt Ordinance No. _____ amending the Code of Ordinances of the City of Allen Chapter 9, Motor Vehicles and Traffic, and Chapter 13, Streets and Sidewalks.

ATTACHMENT(S)

Red-line Document
Ordinance

Sec. 9-2. - Definitions.

Commercial ~~motor~~ vehicle means any vehicle designed, intended, or used for transportation or delivery of people or property, or, a vehicle that is not designed or used to primarily transport persons or property and is only incidentally operated on a highway, other than private passenger vehicles and recreational vehicles. The term "commercial vehicle" shall include, but is not limited to, the following: pole trailer, semitrailer, trailer, truck, truck-tractor, construction machinery, special mobile equipment, and bus.

Construction machinery means a vehicle that:

- a) is used for construction;
- b) is built from the ground up;
- c) is not mounted or affixed to another vehicle such as a trailer;
- d) was originally and permanently designed as machinery;
- e) was not in any way originally designed to transport persons or property; and
- f) does not carry a load, including fuel.

Parking facility has the meaning as assigned in the Local Government Code section 601.021

Recreational vehicle means any motor vehicle or trailer designed or used as a travel trailer, camper, motor home, tent trailer, house trailer, boat, boat trailer, camping trailer, or other similar purposes including any vehicle exclusively used to tow or haul a recreation vehicle.

Truck means a motor vehicle designed, used, or maintained primarily to transport property.

Sec. 9-227. Parking of ~~trucks, tractors,~~ commercial vehicles, service vehicles, recreational vehicles, etc., in residential districts.

- (a) *Public streets.* A person commits an offense if the person stops, parks or stands any commercial vehicle, service vehicle, recreational vehicle, special mobile equipment, farm tractor or implement of husbandry, trailer, or vehicle with more than two (2) axles upon any public street, alley, right-of-way or public space within the city.

~~It shall be unlawful for any person to park or stand any commercial vehicle, house trailer, special mobile equipment, farm tractor or implement of husbandry, service vehicle, or vehicle with more than two (2) axles upon any public street, alley or public right-of-way within a residential area. It shall be a defense to a violation of this section 9-227(a) if the person is parking or standing the vehicle for the purpose of~~

~~expeditiously loading and unloading passengers, freight or merchandise, or is a contractor actively engaged in work activities.~~

(b) This section (a) shall not apply to

- (1) Street construction, maintenance, and repair equipment engaged in maintenance or repair activities;
- (2) Trucks, equipment, trailers, and vehicles used by public service utility companies engaged in repairing or extending public service utilities;
- (3) Motor busses when taking on or discharging passengers at customary bus stops;
- (4) Other vehicles when actually parking at a designated loading zone, or where it is lawful to park a commercial motor vehicle for the purpose of accepting or delivering transportable goods;
- (5) A recreational vehicle parked on a residential street for the purpose of loading and unloading for a period not to exceed twenty-four (24) hours;
- (6) A recreational vehicle parked on a residential street by an out-of-town visitor for a period not exceeding five (5) consecutive days and adjacent to a residential dwelling the residents of which the recreational vehicle owner or operator is visiting;
- (7) A passenger car, pickup truck; or passenger van which displays a decal, identification card or other device bearing the international symbol of access consisting of a stylized wheelchair on a blue background issued in accordance with state law to any handicapped driver or a license plate issued by any state that bears the international symbol of access; or
- (8) A vehicle with a mechanical defect, making it unsafe to proceed further, in which event, it shall be lawful to stand or park the vehicle during the time necessary to make emergency repairs.
- (9) Any commercial vehicle that has been placed out of service by a CVSA certified inspector AND has had a decal affixed to the vehicle showing that the vehicle, combination of vehicles, or driver has been taken out of service for an imminent hazard.
- (10) Any commercial vehicle that is parked in a parking facility where the owner or operator has paid for the privilege to park, and is separated by a fence from the area adjacent to a public street or residential lot.

- (b) *Residential property.* It shall be unlawful for any person to park or stand any commercial vehicle, service vehicle, special mobile equipment, farm tractor or implement of husbandry ~~any of the following vehicles~~ upon property within a residential area.

This section (b) shall not apply to:

(1) Parking or standing a vehicle for the purpose of expeditiously loading and unloading passengers, freight or merchandise, or a contractor actively engaged in work activities, or

(2) A service vehicle parked on or adjacent to property on which is located the primary residence of the owner or operator of the service vehicle.

~~(1) Any commercial vehicle, special mobile equipment, farm tractor or implement of husbandry.~~

~~(2) Any service vehicle;~~

~~(3) Vehicles parked so as to obstruct the view of traffic from adjacent driveways or streets, or obstruct public sidewalks, alleys or rights-of-way.~~

~~It shall be a defense to a violation of this section 9-277(b) if (i) the person is parking or standing the vehicle for the purpose of expeditiously loading and unloading passengers, freight or merchandise, or is a contractor actively engaged in work activities, or (ii) the vehicle is a service vehicle parked on or adjacent to property on which is located the primary residence of the owner or operator of the service vehicle.~~

~~(c) *Overnight parking.* It shall be unlawful for any person to park or stand any vehicle listed in (a) upon any public street, alley or public right of way within the city at any time from thirty (30) minutes after sunset until thirty (30) minutes before sunrise.~~

~~(d) *Recreational vehicles.* It shall be unlawful for any person to park any recreational vehicle upon any public street, alley or public right of way within the city. It shall be a defense to a violation of this section 9-227(d) if:~~

~~(1) The person parked the recreational vehicle on a residential street for the purpose of loading and unloading for a period not to exceed twenty four (24) hours; or~~

~~(2) The person parked the recreational vehicle on a residential street for a period not exceeding five (5) consecutive days adjacent to a residential dwelling the residents of which the person was visiting.~~

~~(e) *Defense: disabled persons.* It shall be a defense to a violation of this section 9-227 if the person parked a passenger car, pickup truck; or passenger van which displays a decal, identification card or other device bearing the international symbol of access consisting of a stylized wheelchair on a blue background issued in accordance with state law to any handicapped driver or a license plate issued by any state that bears the international symbol of access.~~

Sec. 9-229. Parking of commercial vehicles.

~~A person commits an offense if the person stops, parks or stands any commercial vehicle, house trailer, special mobile equipment, farm tractor or implement of husbandry, or trailer upon any public street, alley, right-of-way or public space within the city. This section shall not apply to street construction, maintenance, and repair equipment; trucks, equipment, trailers, and vehicles used by public service utility companies engaged in repairing or extending public service utilities; motor busses when taking on or discharging passengers at customary bus stops; other vehicles when actually parking at a designated loading zone, or where it is lawful to park a commercial motor vehicle for the purpose of accepting or delivering transportable goods; or a vehicle with a mechanical defect, making it unsafe to proceed further, in which event, it shall be lawful to stand or park the vehicle during the time necessary to make emergency repairs.~~

Sec. 9-229. Time limitation for unattended motor vehicles.

It shall be unlawful for any person to stop, stand, park or allow any vehicle under his or her ownership, care, custody or control to remain on a city street, alley, public right-of-way, or other public place in excess of five (5) consecutive days without being operated and moved at least one hundred (100) feet during such period.

Sec. 9-230. Parking of vehicles with expired or invalid license plates.

It shall be unlawful for any person to stop, stand, or park or allow any vehicle under his or her ownership, care, custody or control to remain within a public right-of-way, if the vehicle does not have lawfully affixed thereto:

- (1) A valid license plate; or
- (2) A valid temporary tag assigned to that vehicle; and
- (3) A valid and current motor vehicle registration sticker. It is an exception to the offense established by this section if the registration sticker has been expired for less than sixty (60) calendar days.

Secs. 9-231—9-240. Reserved.

Sec. 13-17. Obstructions within public rights-of-way.

- a) It shall be unlawful to place or maintain any permanent or temporary sign, signpost, advertising displays, materials, object, or obstruction within a public right-of-way, sidewalk, or median unless otherwise permitted by the City.
- b) It shall be unlawful to place or store any object, materials, sports equipment, or storage containers, other than legally parked vehicles, on a public street or alley unless otherwise permitted by the City.
- c) The above provisions of this Article shall not apply to:
 - 1. A legally permitted dumpster or storage pod actively being used for construction activities that have an active building permit.
 - 2. A moving or storage pod actively being used by the resident for the purpose of moving personal property.
 - 3. For all exceptions listed in Section c, objects shall only be placed in the street if it is demonstrated that adequate space on private property is not accessible. The City may require objects to be oriented or re-oriented in a manner to minimize potential safety issues and/or require that the object include safety markings to increase visibility or traffic control devices to enhance safety.
- d) The City may, without notice, remove any items or obstructions from within the limits of the public right-of-way or median in accordance with State law.

Sec. 13-187. – Penalty.

Any person violating any of the provisions of this article shall be deemed guilty of a misdemeanor and upon conviction in the municipal court shall be subject to a fine not to exceed five hundred dollars (\$500.00) for each offense; and each and every day such violation continues, it shall constitute a separate offense.

Secs. 13-198—20. – Reserved.

ORDINANCE NO. _____

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, AMENDING THE CODE OF ORDINANCES BY AMENDING CHAPTER 9, "MOTOR VEHICLES AND TRAFFIC", ARTICLE I, "IN GENERAL" BY AMENDING SECTION 9-2, "DEFINITIONS", AND BY AMENDING ARTICLE IX, "STOPPING, STANDING AND PARKING GENERALLY", DIVISION 1 "GENERALLY" BY AMENDING SECTION 9-227, "PARKING OF TRUCKS, TRACTORS, COMMERCIAL VEHICLES, ETC., IN RESIDENTIAL DISTRICTS" AND BY AMENDING CHAPTER 13 "STREETS AND SIDEWALKS"; PROVIDING A REPEALING CLAUSE; PROVIDING A SAVINGS CLAUSE; PROVIDING A SEVERABILITY CLAUSE; PROVIDING FOR A PENALTY OF FINE NOT TO EXCEED THE SUM OF FIVE HUNDRED DOLLARS (\$500.00); AND PROVIDING FOR AN EFFECTIVE DATE.

WHEREAS, the City Council of the City of Allen, Texas, finds it to be in the public interest to amend the Code of Ordinances by amending Chapter 9, titled "Motor Vehicles and Traffic," and Chapter 13, titled "Streets and Sidewalks."

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, THAT:

SECTION 1. The Code of Ordinances of the City of Allen, Collin County, Texas, be and the same is hereby amended by amending Chapter 9, "Motor Vehicles and Traffic", to read as follows:

"CHAPTER 9 MOTOR VEHICLES AND TRAFFIC

...

Sec. 9-2. Definitions.

Commercial vehicle means any vehicle designed, intended, or used for transportation or delivery of people or property, or a vehicle that is not designed or used to primarily transport persons or property and is only incidentally operated on a highway, other than private passenger vehicles and recreational vehicles. The term "commercial vehicle" shall include, but is not limited to, the following: pole trailer, semitrailer, trailer, truck, truck-tractor, construction machinery, special mobile equipment, and bus.

...

Construction machinery means a vehicle that:

- (a) is used for construction;
- (b) is built from the ground up;
- (c) is not mounted or affixed to another vehicle, such as a trailer;
- (d) was originally and permanently designed as machinery;
- (e) was not in any way originally designed to transport persons or property; and
- (f) does not carry a load, including fuel.

...

Parking facility has the same meaning as assigned in the Local Government Code Section 601.021.

...

Recreational vehicle means any motor vehicle or trailer designed or used as a travel trailer, camper, motor home, tent trailer, house trailer, boat, boat trailer, camping trailer, or other similar purposes, including any vehicle exclusively used to tow or haul a recreation vehicle.

...

Truck means a motor vehicle designed, used, or maintained primarily to transport property.

...

Sec. 9-227. Parking of commercial vehicles, service vehicles, recreational vehicles, etc.

- (a) *Public streets.* A person commits an offense if the person stops, parks or stands any commercial vehicle, service vehicle, recreational vehicle, special mobile equipment, farm tractor or implement of husbandry, trailer, or vehicle with more than two (2) axles upon any public street, alley, right-of-way or public space within the city.

This section (a) shall not apply to:

- (1) Street construction, maintenance, and repair equipment engaged in maintenance or repair activities;
 - (2) Trucks, equipment, trailers, and vehicles used by public service utility companies engaged in repairing or extending public service utilities;
 - (3) Motor busses when taking on or discharging passengers at customary bus stops;
 - (4) Parking or standing a vehicle for the purpose of expeditiously loading and unloading passengers, freight or merchandise, or a contractor actively engaged in work activities;
 - (5) A recreational vehicle parked on a residential street for the purpose of loading and unloading for a period not to exceed twenty-four (24) hours;
 - (6) A recreational vehicle parked on a residential street by an out-of-town visitor for a period not exceeding five (5) consecutive days and adjacent to a residential dwelling the residents of which the recreational vehicle owner or operator is visiting;
 - (7) A passenger car, pickup truck; or passenger van which displays a decal, identification card or other device bearing the international symbol of access consisting of a stylized wheelchair on a blue background issued in accordance with state law to any handicapped driver or a license plate issued by any state that bears the international symbol of access;
 - (8) A vehicle with a mechanical defect, making it unsafe to proceed further, in which event, it shall be lawful to stand or park the vehicle during the time necessary to make emergency repairs;
 - (9) Any commercial vehicle that has been placed out of service by a CVSA certified inspector AND has had a decal affixed to the vehicle showing that the vehicle, combination of vehicles, or driver has been taken out of service for an imminent hazard; or
 - (10) Any commercial vehicle that is parked in a parking facility where the owner or operator has paid for the privilege to park, and is separated by a fence from the area adjacent to a public street or residential lot.
- (b) Residential property. It shall be unlawful for any person to park or stand any commercial vehicle, service vehicle, special mobile equipment, farm tractor or implement of husbandry upon property within a residential area.

This section (b) shall not apply to:

- (1) Parking or standing a vehicle for the purpose of expeditiously loading and unloading passengers, freight or merchandise, or a contractor actively engaged in work activities, or
- (2) A service vehicle parked on or adjacent to the property on which is located the primary residence of the owner or operator of the service vehicle.

...

Sec. 9-229. Time limitation for unattended motor vehicles.

It shall be unlawful for any person to stop, stand, park or allow any vehicle under his or her ownership, care, custody or control to remain on a city street, alley, public right-of-way, or other public place in excess of five (5) consecutive days without being operated and moved at least one hundred (100) feet during such period.

...

Sec. 9-230. Parking of vehicles with expired or invalid license plates.

It shall be unlawful for any person to stop, stand, or park or allow any vehicle under his or her ownership, care, custody or control to remain within a public right-of-way if the vehicle does not have lawfully affixed thereto:

- (1) A valid license plate; or
- (2) A valid temporary tag assigned to that vehicle; and
- (3) A valid and current motor vehicle registration sticker. It is an exception to the offense established by this section if the registration sticker has been expired for less than sixty (60) calendar days.

Secs. 9-231 – 9-240 Reserved.”

SECTION 2. The Code of Ordinances of the City of Allen, Collin County, Texas, be and the same is hereby amended by amending Chapter 13, “**Streets and Sidewalks,**” to read as follows:

“CHAPTER 13 STREETS AND SIDEWALKS

...

Sec. 13-17. Obstructions within public rights-of-way.

- (a) It shall be unlawful to place or maintain any permanent or temporary sign, signpost, advertising displays, materials, object, or obstruction within a public right-of-way, sidewalk, or median unless otherwise permitted by the City.
- (b) It shall be unlawful to place or store any object, materials, sports equipment, or storage containers, other than legally parked vehicles, on a public street or alley unless otherwise permitted by the City.
- (c) The above provisions of this Article shall not apply to:
 - 1. A legally permitted dumpster or storage pod actively being used for construction activities that has an active building permit.
 - 2. A moving or storage pod actively being used by the resident for the purpose of moving personal property.
 - 3. For all exceptions listed in Section c, objects shall only be placed in the street if it is demonstrated that adequate space on private property is not accessible. The City may require objects to be oriented or re-oriented in a manner to minimize potential safety issues and/or require that the object include safety markings to increase visibility or traffic control devices to enhance safety.
- (d) The City may, without notice, remove any items or obstructions from within the limits of the public right-of-way or median in accordance with State law.

Sec. 17-18. Penalty

Any person violating any of the provisions of this article shall be deemed guilty of a misdemeanor and upon conviction in the municipal court shall be subject to a fine not to exceed five hundred dollars (\$500.00) for each offense; and each and every day such violation continues, it shall constitute a separate offense.

Secs. 13-18 – 20. Reserved.”

SECTION 3. All provisions of the ordinances of the City of Allen in conflict with the provisions of this ordinance be, and the same are hereby, repealed, and all other provisions of the ordinances of the City of Allen not in conflict with the provisions of this ordinance shall remain in full force and effect.

SECTION 4. Should any word, sentence, paragraph, subdivision, clause, phrase, or section of this ordinance, as amended hereby, be adjudged, or held to be void or unconstitutional, the same shall not affect the validity of the remaining portions of said ordinance, which shall remain in full force and effect.

SECTION 5. An offense committed before the effective date of this ordinance is governed by prior law and the provisions of the Code of Ordinances, as amended, in effect when the offense was committed, and the former law is continued in effect for this purpose.

SECTION 6. Any person, firm or corporation violating any of the provisions or terms of this Ordinance shall be deemed guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed the sum of Five Hundred and No/100 Dollars (\$500.00) for each offense.

SECTION 7. This ordinance shall take effect immediately from and after its passage, as the law and charter in such cases provide.

DULY PASSED AND APPROVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, ON THIS THE 22ND DAY OF OCTOBER 2024.

APPROVED:

Baine L. Brooks, MAYOR

APPROVED AS TO FORM:

ATTEST:

Peter G. Smith, CITY ATTORNEY
(10-16-2024; 4881-2447-3072, v. 1)

Shelley B. George, TRMC, CITY SECRETARY

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION
--

AGENDA DATE: October 22, 2024

AGENDA CAPTION: Adopt an Ordinance amending the Code of Ordinances of the City of Allen Chapter 9, "Motor Vehicles and Traffic," Article XIII "Pedestrian Safety" to add regulations for pedestrian safety.

STAFF RESOURCE: Steve Dye, Chief of Police

STRATEGIC PLANNING GOAL: Safe and Livable Community for All.

BACKGROUND

The Allen Police Department is concerned with the safety of motorists and pedestrians who occupy or stand in medians less than six (6) feet in width. These narrow medians can create a hazardous situation for themselves and the motoring public. The ordinance will make it illegal for individuals to stand in or occupy a median less than six (6) feet in width. This does not conflict with other existing ordinances regulating sidewalks and medians.

The City of Plano and the City of Austin have similar ordinances.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to adopt Ordinance No. _____ amending the Code of Ordinances of the City of Allen Chapter 9, "Motor Vehicles and Traffic," Article XIII "Pedestrian Safety."

ATTACHMENT(S)

[Ordinance](#)

ORDINANCE NO. _____

AN ORDINANCE OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, AMENDING THE CODE OF ORDINANCES BY AMENDING CHAPTER 9, “MOTOR VEHICLES AND TRAFFIC”, ARTICLE XIII, “PEDESTRIAN SAFETY”, TO ADD REGULATIONS FOR PEDESTRIAN SAFETY; PROVIDING A REPEALING CLAUSE; PROVIDING A SAVINGS CLAUSE; PROVIDING A SEVERABILITY CLAUSE; PROVIDING FOR A PENALTY OF FINE NOT TO EXCEED THE SUM OF FIVE HUNDRED DOLLARS (\$500.00) FOR EACH OFFENSE; AND PROVIDING FOR AN EFFECTIVE DATE.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, THAT:

SECTION 1. The Code of Ordinances of the City of Allen, Collin County, Texas, be and the same is hereby amended by amending Chapter 9, “Motor Vehicles and Traffic”, Article XIII, “Pedestrian Safety”, to read as follows:

“ARTICLE XIII PEDESTRIAN SAFETY

Section 9-341. - Pedestrians on medians less than six feet in width and approaching a motor vehicle in operation on a major thoroughfare, freeway or access road.

- (a) Offenses. It shall be an offense for a person to:
- (1) Stand, sit, or loiter on a roadway median that measures less than six (6) feet, or
 - (2) Approach a motor vehicle being operated on a major thoroughfare, freeway or access road.
- (b) Defenses. It shall be a defense to prosecution if the conduct prohibited by this section was by a person:
- (1) Lawfully and actively crossing a divided roadway in the most direct route possible;
 - (2) Immediately and reasonably necessary to prevent bodily injury or death of any person;
 - (3) Receiving and/or rendering aid in an emergency situation;
 - (4) Performing work in the right-of-way in accordance with a permit issued by the City; or
 - (5) Performing work under city, state, or federal authority to protect the health, safety, or welfare of the community, including but not limited to activities by police and fire departments; maintenance of roadways, utilities, and other public areas; and activities by city employees or its contractors performing work in the course and scope of their employment and pursuant to authorization from the city manager or designee.”

SECTION 2. All ordinances of the City of Allen, Collin County, Texas, in conflict with the provisions of this ordinance be, and the same are hereby, repealed; provided, however, that all other provisions of said ordinances not in conflict with the provisions of this ordinance shall remain in full force and effect.

SECTION 3. Should any word, sentence, paragraph, subdivision, clause, phrase, or section of this ordinance, as amended hereby, be adjudged, or held to be void or unconstitutional, the same shall not affect the validity of the remaining portions of said ordinance, which shall remain in full force and effect.

SECTION 4. An offense committed before the effective date of this ordinance is governed by prior law and the provisions of the Code of Ordinances, as amended, in effect when the offense was committed, and the former law is continued in effect for this purpose.

SECTION 5. Any person, firm or corporation violating any of the provisions or terms of this ordinance or of the Code of Ordinances as amended hereby, shall be subject to the same penalty as provided for in the Code of Ordinances of the City of Allen, as previously amended, and upon conviction shall be punished by a fine not to exceed the sum of Five Hundred Dollars (\$500) for each offense.

SECTION 6. This ordinance shall take effect immediately from and after its passage, as the law and charter in such cases provide.

DULY PASSED AND APPROVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, ON THIS THE 22ND DAY OF OCTOBER 2024.

APPROVED:

Baine L. Brooks, MAYOR

APPROVED AS TO FORM:

ATTEST:

Peter G. Smith, CITY ATTORNEY
(pgs:10-14-24)

Shelley B. George, TRMC, CITY SECRETARY

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION

AGENDA DATE:	October 22, 2024
AGENDA CAPTION:	Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, to continue funding the position of a Crime Victim Advocate.
STAFF RESOURCE:	Steve Dye, Chief of Police
PREVIOUS COUNCIL ACTION:	September 12, 2023 - Resolution No. 4030-9-2 (R) applying for Crime Victim Advocate Grant. February 8, 2022 - Resolution No. 3889-2-22 (R) applying for the Crime Victim Advocate Grant.
STRATEGIC PLANNING GOAL:	Safe and Livable Community for All.

BACKGROUND

The State of Texas, Office of the Governor awards grants annually for Criminal Justice and Crime Victim Services. The City of Allen Police Department participates in submitting a grant application requesting funds to enhance our Crime Victim Services program. The grant, if funded, would provide the ability to continue funding the second of two crime victim advocate positions to better serve victims of crime in the Allen community. The duties of a Crime Victim Advocate may include, but are not limited to, assisting victims of crime with compensation forms, counseling, court assistance, criminal justice system, and case development. This is a full-time position.

A new grant application is required for each subsequent year. Historically, grants similar to this have been funded for three years before the position is fully absorbed into the General Fund. This is year three of three for this grant.

BUDGETARY IMPACT

The grant's total budget is \$85,403, with State funding of \$68,322. The city will cover all expenses over this amount which could include fringe benefits, overtime, and other miscellaneous expenses. This amount would be \$17,081. After this year, the position would be funded through the General Fund, Police Operations budget.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to adopt Resolution No. _____ authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant to continue funding the position of a Crime Victim Advocate.

ATTACHMENT(S)

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, TO APPLY FOR, ACCEPT, REJECT, ALTER, OR TERMINATE GRANT # 4461303 A GRANT FROM THE STATE OF TEXAS, OFFICE OF THE GOVERNOR PROVIDING FUNDING FOR A CRIME VICTIM ADVOCATE IN THE AMOUNT OF \$85,403, IF AWARDED.

WHEREAS, the City of Allen, and its Police Department, respond to reports of crime that involve residents, businesses, and visitors who are victims; and,

WHEREAS, the City of Allen Police Department has recognized the needs of these victims by providing advocate services to assist them through these often-time traumatic events, through the criminal court process, and with obtaining counseling services and financial aid, if needed; and,

WHEREAS, the City of Allen Police Department believes that continuation of an additional Crime Victim Advocate position will better assist the Police Department in providing better service to its residents and visitors who are victims of crime; and,

WHEREAS, the City of Allen believes that the continuation of a second Crime Victim Advocate is in the best interest of the City and its residents and visitors.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, THAT:

SECTION 1. That the City of Allen has agreed that in the event of loss or misuse of State of Texas, Office of the Governor Funds for the continuation of the Crime Victim Advocate Grant (application # 4461303), they will be returned to the State of Texas, Office of the Governor in full.

SECTION 2. That the City of Allen is committed to funding all required and applicable matching funds through cash and/or in-kind.

SECTION 3. That the City Manager is hereby authorized to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor to assist the City of Allen and the Allen Police Department to fund the continuation of an additional Crime Victim Advocate (application # 4461303).

SECTION 4. That this resolution shall take effect immediately from and after its passage in accordance with the provisions of the Charter of the City of Allen, and it is accordingly so resolved.

DULY PASSED AND APPROVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, ON THIS THE 22ND DAY OF OCTOBER 2024.

APPROVED:

Baine L. Brooks, MAYOR

ATTEST:

Shelley B. George, CITY SECRETARY

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION

AGENDA DATE:	October 22, 2024
AGENDA CAPTION:	Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, to continue funding the position of a Digital Forensics Examiner.
STAFF RESOURCE:	Steve Dye, Chief of Police
PREVIOUS COUNCIL ACTION:	September 23, 2023 - Resolution No. 4028-9-23 - applying for the Digital Forensics Examiner grant.
STRATEGIC PLANNING GOAL:	Safe and Livable Community for All.

BACKGROUND

The State of Texas, Office of the Governor awards grants annually for Criminal Justice and Crime Victim Services. The City of Allen Police Department intends to submit a grant application requesting funds to enhance our Criminal Investigations by having a Digital Forensics Examiner. The grant, if funded, would provide the ability to continue funding a second Digital Forensics Examiner position to better investigate crimes that happen in or near our community. The duties of a Digital Forensics Examiner may include but are not limited to examining various electronic devices, testifying in court, assisting other law enforcement agencies, and other duties related to law enforcement and investigations. This is a full-time sworn police officer position.

A new grant application is required for each subsequent year. Historically, grants similar to this have been funded for three years before the position is fully absorbed into the General Fund. This is year two of three for this position.

BUDGETARY IMPACT

The grant application is for \$85,202. The city will cover all expenses over this amount, which could include fringe benefits, overtime, and other miscellaneous expenses. This amount should not exceed \$30,000 annually.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to adopt Resolution No. _____ authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant to continue funding the position of a Digital Forensics Examiner.

ATTACHMENT(S)

[Resolution](#)

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, TO APPLY FOR, ACCEPT, REJECT, ALTER, OR TERMINATE GRANT # 4781002 A GRANT FROM THE STATE OF TEXAS, OFFICE OF THE GOVERNOR, PROVIDING FUNDING FOR A DIGITAL FORENSICS EXAMINER, IN THE AMOUNT OF \$85,202, IF AWARDED.

WHEREAS, the City of Allen, and its police department, encountered hundreds of digital devices such as computers, tablets, cellular phones, and other electronics containing digital media; and,

WHEREAS, the City of Allen Police Department knows that evidence of crimes that have occurred are sometimes stored on these devices; and,

WHEREAS, the City of Allen Police Department believes that the addition of a Digital Forensics Examiner will lead to better criminal investigations because the resources exist to find digital evidence on the devices used by criminals; and,

WHEREAS, the City of Allen Police Department has agreed to provide matching funds, cash or in-kind, for a Digital Forensics Examiner to conduct these electronic investigations, as it appears in the grant application.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, THAT:

SECTION 1. That the City of Allen has agreed that in the event of loss or misuse of State of Texas, Office of the Governor Funds for the Digital Forensics Examiner Grant (application # 4781002), they will be returned to the State of Texas, Office of the Governor, Criminal Justice Division in full.

SECTION 2. That the City of Allen is committed to funding all required and applicable matching funds through cash and/or in-kind.

SECTION 3. That the City Manager is hereby authorized to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, Criminal Justice Division to assist the City of Allen and the Allen Police Department to fund a Digital Forensics Examiner (application # 4781002).

SECTION 4. That this resolution shall take effect immediately from and after its passage in accordance with the provisions of the Charter of the City of Allen, and it is accordingly so resolved.

DULY PASSED AND APPROVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, ON THIS THE 22ND DAY OF OCTOBER 2024.

APPROVED:

Baine L. Brooks, MAYOR

ATTEST:

Shelley B. George, CITY SECRETARY

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION

AGENDA DATE: October 22, 2024

AGENDA CAPTION: Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, Texas Homeland Security Administrative Agency for funding to purchase SWAT Ballistic Vests and Gas Mask Equipment under the Urban Area Security Initiative (UASI) Grant Program for \$102,439.

STAFF RESOURCE: Steve Dye, Chief of Police

STRATEGIC PLANNING GOAL: Safe and Livable Community for All.

BACKGROUND

The Urban Areas Security Initiative (UASI) Program assists high-threat, high-density Urban Areas in efforts to build and sustain the capabilities necessary to prevent, protect against, mitigate, respond to, and recover from acts of terrorism. The UASI program is intended to provide financial assistance to address the unique multi-discipline planning, organization, equipment, training, and exercise needs of high-threat, high-density Urban Areas and to assist these areas in building and sustaining capabilities to prevent, protect against, mitigate, respond to, and recover from threats or acts of terrorism using the Whole Community approach. The Dallas/Fort Worth/Arlington urban area, along with the surrounding counties, receive funding through the State of Texas under this program. In Collin County, the Cities of Allen, McKinney, Plano, and Frisco, along with Collin County share funding to enhance programs and equipment within the program guidelines.

This is the second year the City of Allen has participated in this program.

BUDGETARY IMPACT

There is no budgetary impact and no match for this grant. There may be minimal cost associated with additional equipment needs once the grant is awarded which will be funded through the General Fund, Police Operating budget.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to adopt Resolution No. _____ authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant to purchase SWAT Ballistic Vests and Gas Mask Equipment under the UASI Grant Program for \$102,439.

ATTACHMENT(S)

[Resolution](#)

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, TO APPLY FOR, ACCEPT, REJECT, ALTER, OR TERMINATE GRANT #5246801 FROM THE STATE OF TEXAS, OFFICE OF THE GOVERNOR, TEXAS HOMELAND SECURITY STATE ADMINISTRATIVE AGENCY PROVIDING FUNDING TO PURCHASE SWAT BALLISTIC VESTS AND GAS MASK EQUIPMENT UNDER THE URBAN AREA SECURITY INITIATIVE (UASI) GRANT IN THE AMOUNT OF \$102,439.

WHEREAS, the City of Allen, and its police department, respond to emergency calls that involve the Special Weapons and Tactics (SWAT) team; and

WHEREAS, the City of Allen Police Department must mitigate these dangerous incidents as safely as possible while minimizing injuries and loss of life; and

WHEREAS, having new ballistic vests and gas mask capabilities within the police department enhances both officer and public safety; and

WHEREAS, the City of Allen agrees to all of the terms and conditions of the grant as listed in the application.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, THAT:

SECTION 1. The City of Allen has agreed that in the event of loss or misuse of grant funds designated for the purchase of SWAT ballistic vests and gas mask equipment will be returned in full to the State of Texas, Office of the Governor.

SECTION 2. The City Manager is hereby authorized to apply for, accept, reject, alter, or terminate this grant from the State of Texas, Office of the Governor to purchase SWAT ballistic vests and gas mask equipment.

SECTION 3. This resolution shall take effect immediately from and after its passage in accordance with the provisions of the Charter of the City of Allen, and it is accordingly so resolved.

DULY PASSED AND APPROVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, ON THIS THE 22ND DAY OF OCTOBER 2024.

APPROVED:

Baine L. Brooks, MAYOR

ATTEST:

Shelley B. George, CITY SECRETARY

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION

AGENDA DATE: October 22, 2024

AGENDA CAPTION: Adopt a Resolution authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, for funding to purchase a Virtual Reality Simulator for \$70,000.

STAFF RESOURCE: Steve Dye, Chief of Police

STRATEGIC PLANNING GOAL: Safe and Livable Community for All.

BACKGROUND

The State of Texas Office of the Governor awards grants annually for Criminal Justice projects. The City of Allen Police Department intends to submit a grant application requesting funds to purchase a Virtual Reality Simulator. The simulator can be utilized in a controlled setting to enhance de-escalation skills and the appropriate response to aggression. These simulators provide realistic high-stress simulated incidents that allow officers to train for the correct response to critical incidents.

Equipment only grants have a one-year term.

BUDGETARY IMPACT

Equipment-only grants are funded at 100%. The city would be responsible for any additional costs for additional options or equipment. Funding for additional options or equipment would be in the General Fund, Police Operating budget.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to adopt Resolution No. _____ authorizing the City Manager to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, for funding to purchase a Virtual Reality Simulator for \$70,000.

ATTACHMENT(S)

[Resolution](#)

RESOLUTION NO. _____

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, TO APPLY FOR, ACCEPT, REJECT, ALTER, OR TERMINATE GRANT # 5093201 A GRANT FROM THE STATE OF TEXAS, OFFICE OF THE GOVERNOR PROVIDING FUNDING TO PURCHASE VIRTUAL REALITY SIMULATOR IN THE AMOUNT OF \$70,000, IF AWARDED.

WHEREAS, the City of Allen, and its police department, must maintain the highest standards of training for its sworn police officers; and,

WHEREAS, the City of Allen Police Department has recognized the need to provide its officers with the most realistic and practical training possible to better prepare them for potential violent encounters officers might face during their shifts and the skills to attempt to de-escalate these encounters; and,

WHEREAS, the City of Allen Police Department believes that additional training using a Virtual Reality Simulator will enhance the training officers receive and should decrease potential injuries to officers and citizens; and

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, THAT:

SECTION 1. That the City of Allen has agreed that in the event of loss or misuse of the Criminal Justice Division Funds for a Virtual Reality Simulator Grant (application # 5093201), they will be returned to the State of Texas, Office of the Governor, Criminal Justice Division in full.

SECTION 2. That the City Manager is hereby authorized to apply for, accept, reject, alter, or terminate a grant from the State of Texas, Office of the Governor, Criminal Justice Division to assist the City of Allen and the Allen Police Department to fund a Virtual Reality Simulator (application #5093201).

SECTION 3. That this resolution shall take effect immediately from and after its passage in accordance with the provisions of the Charter of the City of Allen, and it is accordingly so resolved.

DULY PASSED AND APPROVED BY THE CITY COUNCIL OF THE CITY OF ALLEN, COLLIN COUNTY, TEXAS, ON THIS THE 22ND DAY OF OCTOBER 2024.

APPROVED:

Baine L. Brooks, MAYOR

ATTEST:

Shelley B. George, CITY SECRETARY

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION

AGENDA DATE:	October 22, 2024
AGENDA CAPTION:	Authorize the City Manager to execute an agreement with Brinkley Sargent Wiginton Architects for Design Development and Construction Documents for the new Allen Police Department Headquarters for \$2,262,615.
STAFF RESOURCE:	Chris Flanigan, Director of Engineering; Steve Dye, Chief of Police
PREVIOUS COUNCIL ACTION:	July 26, 2022 - Award for Design Services for a new Police Department Headquarters July 9, 2024 – Sale of General Obligation bonds from 2023 Bond Election
STRATEGIC PLANNING GOAL:	Financially Sound and Transparent City Government.

BACKGROUND

The original Police Department Headquarters was designed by Hidell Architects in 1987 and constructed in 1988. At that time, the facility consisted of a single-story building with a large open-air atrium. It has since been expanded twice and undergone multiple rounds of space reallocation, currently at 36,000 square feet in size.

Between January and March 2022, the City received submittals of qualification (SOQs) from multiple architectural firms after advertising the project for competition. Among the submittals, two firms were invited to interview and compete for the design contract. A panel of six (6) representatives from different city departments, with the assistance of an expert consultant, were present during each interview, who anonymously scored each firm in the categories of creativity, design, experience, references, and proposed project team. Brinkley Sargent Wiginton Architects (BSW) was the recommended firm selected for further negotiation of fees by a unanimous panel.

An initial contract for \$3,901,000 ensued prior to the general obligation bond election. This funding was used to develop the initial schematics for the building, provide reliable information upon which to base discussions for a bond election, and program necessary building space for a community build-out scenario for Police staffing and facility needs. This build-out philosophy assumed aggregation of all police uses, currently stretched throughout the community, as well as developing a new headquarters facility that will last the community for the next 50 years without major alterations or reinvestment.

During the design development phase (expenses to date with the architect), the project scope has changed multiple times in a continued balance between resources and needs. Furthermore, during this time, department leadership had changed with the hiring of a new police chief and time was needed to refine the vision for the new facility further with a fresh perspective. Throughout this planning and schematic phase, modifications to the building concept have yielded a better and more thoughtful plan for the facility; however, those changes have taken time and expense to navigate. Consequently, the scope of the original proposal was changed, deferring construction plan development and construction

administration services in order to allocate sufficient funding within the allotted award amount by the City Council to complete Schematic and Design Development (“Phase 1” services).

Now that we are ready and confident to prepare construction documents and move closer to breaking ground, an additional \$2,262,615 in architectural fee is necessary, which we are calling “Phase 2.” Not only is this expense reasonable, but as a result of the iterative approach to concept and design evolution to date, the total sum (\$6,163,615) is within the reasonable range for projects of this size and complexity. Professional services for facility projects can range between 7-10% of construction cost (as a recent example, Fire Station #6 design cost was 9.2% compared to construction cost).

BUDGETARY IMPACT

This revised and total sum is being funded with American Recovery Plan Act funds (\$2.3 million) and General Obligation Bonds (the last of the 2016 bond proceeds as well as proceeds from the newly sold 2023 bonds). The total budget and proposed funding sources for this project are in the 2025-2029 CIP Book, found on page G-05 and within the allocation outlined in the “Arch/Eng” line item for the project.

Expense	Amount
Initial Contract (Ph 1)	\$ 3,901,000
Proposed Amendment (Ph 2)	\$ 2,262,615
Total Design Fee	\$ 6,163,615
Funding Source	Amount
2016 Bonds	\$ 3,300,000
Federal Grant (ARPA)	\$ 2,300,000
2023 Bonds	\$ 563,615
Total Source of Funds	\$ 6,163,615

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to authorize the City Manager and agreement with Brinkley Sargent Wiginton Architects for Design Development and Construction Documents for the new Allen Police Department Headquarters for \$2,262,615.

ATTACHMENT(S)

[Agreement](#)

STATE OF TEXAS §
 §
COUNTY OF COLLIN §

AGREEMENT FOR PROFESSIONAL SERVICES

This agreement (“Agreement”) is made by and between the City of Allen, Texas (“City”) and Brinkley Sargent Wiginton Architects, Inc., a Texas Corporation (“Professional”) (each a “Party” and collectively the “Parties”), acting by and through their authorized representatives.

RECITALS:

WHEREAS, the City desires to engage the services of the Professional as an independent contractor, and not as an employee, to provide the services described in Exhibit “A” (the “Scope of Services”) to assist the City in a new Allen Police Department Building (the “Project”) on the terms and conditions set forth in this Agreement; and

WHEREAS, the Professional desires to render services for the City on the terms and conditions set forth in this Agreement;

NOW THEREFORE, in consideration of the mutual covenants set forth herein, and other valuable consideration, the sufficiency and receipt of which are hereby acknowledged, the Parties agree as follows:

Article I
Term

1.1 This Agreement shall commence on the last date of execution hereof (“Effective Date”) and continue until completion of the services, unless sooner terminated as provided herein.

1.2 Either Party may terminate this Agreement by giving thirty (30) days prior written notice to the other Party. In the event of such termination the Professional shall deliver to City all finished and unfinished documents, data, studies, surveys, drawings, maps, models, reports, photographs or other items prepared by the Professional in connection with this Agreement. Professional shall be entitled to compensation for any services completed to the reasonable satisfaction of the City in accordance with this Agreement prior to such termination.

Article II
Scope of Service

2.1 The Professional shall perform the services in connection with the Project as set forth in the Scope of Services. The Professional shall perform the services: (i) with the professional skill and care ordinarily provided by competent engineers or architects, as the case may be, practicing in the same or similar locality and under the same or similar circumstances and professional license; and (ii) as expeditiously as is prudent considering the ordinary professional skill and care of a competent engineer or architect, as the case may be. If the Professional is not a licensed engineer or registered architect, the Professional shall perform the services: (i) with the

skill and care ordinarily provided by similar consultants practicing in the same or similar locality and under the same circumstances and applicable licenses or certifications; and (ii) as expeditiously as is prudent considering the ordinary skill and care of similar competent consultants.

2.2 The City shall, prior to commencement of services, provide the Professional with the information set forth in the Scope of Services, if any.

2.3 Licenses. Professional represents to City that Professional possesses any and all licenses which may be required by the State of Texas or any other governmental entity having jurisdiction as may be necessary for the performance of Professional's services pursuant to this Agreement.

2.4 The Parties acknowledge and agree that any and all opinions provided by the Professional in connection with the Scope of Services represent the professional judgment of the Professional, in accordance with the standard of care applicable by law to the services performed hereunder.

2.5 Upon execution of this Agreement the City has the right to use the Professional's instruments of service, including but not limited to reports, maps, cost estimates, recommendations or other deliverables for the Project, provided that the City substantially performs its obligations, including prompt payment of all sums when due, under this Agreement. The City's employees, agents, contractors and subcontractors may reproduce applicable portions of the instruments of service for use in performing services or construction for the Project. Upon payment of all amounts due Professional hereunder, all deliverables, materials and reports prepared by the Professional in connection with this Agreement shall become the property of the City. The City shall have the right to publish, disclose, distribute and otherwise use such deliverables, materials and reports only for those purposes for which they were intended. Subject to the foregoing, Professional shall, upon completion of the services, or earlier termination, provide the City with the deliverables, drawings, reports, maps, and materials prepared by Professional as set forth in the Scope of Services.

Article III Schedule of Work

The Professional agrees to complete the required services in accordance with the Project Schedule outlined in the Scope of Services.

Article IV Compensation and Method of Payment

4.1 Professional will be compensated in accordance with the payment schedule and amounts set forth in the Scope of Services. Unless otherwise provided herein, payment to the Professional shall be monthly based on the Professional's monthly progress report and detailed monthly itemized statement for services that shows the names of the Professional's employees,

agents, contractors performing the services, the time worked, the actual services performed, the rates charges for such service, reimbursable expenses, and the amount due and payable as of the current statement, in a form reasonably acceptable to the City. Monthly statements shall include authorized non-salary expenses with supporting itemized invoices and documentation. The City shall pay such monthly statements within thirty (30) days after receipt and City verification of the services and expenses unless otherwise provided herein. The final payment of the compensation shall be made after satisfactory completion of the services following the City acceptance of the study, report, recommendation or other work set forth in the Scope of Services, and the submittal of “AS BUILT” drawings, or record drawings, as applicable.

4.2 Unless otherwise provided in the Scope of Services the Professional shall be responsible for all expenses related to the services provided pursuant to this Agreement including, but not limited to, travel, copying and facsimile charges, telephone, internet and email charges.

4.3 The hourly rates set forth in the Scope of Services, if any shall remain in effect during the term of this Agreement. Any changes to established hourly rates shall require the prior written consent of the City.

Article V

Devotion of Time; Personnel; and Equipment

5.1 The Professional shall devote such time as reasonably necessary for the satisfactory performance of the services under this Agreement. Should the City require additional services not included under this Agreement, the Professional shall make reasonable effort to provide such additional services within the time schedule without decreasing the effectiveness of the performance of services required under this Agreement, and shall be compensated for such additional services on a time and materials basis, in accordance with Professional’s standard hourly rate schedule, or as otherwise agreed between the Parties.

5.2 To the extent reasonably necessary for the Professional to perform the services under this Agreement, the Professional shall be authorized to engage the services of any agents, assistants, persons, or corporations that the Professional may deem proper to aid or assist in the performance of the services under this Agreement. The Professional shall provide written notice to and obtain written approval from the City prior to engaging services not referenced in the Scope of Services. The cost of such personnel and assistance shall be included as part of the total compensation to be paid Professional hereunder and shall not otherwise be reimbursed by the City unless otherwise provided herein.

5.3 The Professional shall furnish the facilities, equipment and personnel necessary to perform the services required under this Agreement unless otherwise provided herein.

5.4 The Professional shall submit monthly progress reports and attend monthly progress meetings scheduled by the City or more frequently as may be required by the City from time to time based upon Project demands. Each progress report shall detail the work accomplished

and special problems or delays experienced on the Project during the previous report period, and the planned work activities and special problems or delays anticipated for the next report period.

Article VI Miscellaneous

6.1 Entire Agreement. This Agreement constitutes the sole and only agreement between the Parties and supersedes any prior understandings written or oral agreements between the Parties with respect to this subject matter.

6.2 Assignment. The Professional may not assign this Agreement without the prior written consent of City. In the event of an assignment by the Professional to which the City has consented, the assignee shall agree in writing with the City to personally assume, perform, and be bound by all the covenants, and obligations contained in this Agreement.

6.3 Successors and Assigns. Subject to the provisions regarding assignment, this Agreement shall be binding on and inure to the benefit of the Parties to it and their respective heirs, executors, administrators, legal representatives, successors and assigns.

6.4 Governing Law. The laws of the State of Texas shall govern this Agreement without regard to any conflict of law rules; and venue for any action concerning this Agreement shall be in the State District Court of Collin County, Texas. The Parties agree to submit to the personal and subject matter jurisdiction of said court.

6.5 Amendments. This Agreement may be amended by the mutual written agreement of the Parties.

6.6 Severability. In the event any one or more of the provisions contained in this Agreement shall for any reason be held to be invalid, illegal, or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect any other provisions, and the Agreement shall be construed as if such invalid, illegal, or unenforceable provision had never been contained in it.

6.7 Independent Contractor. It is understood and agreed by and between the Parties that the Professional, in satisfying the conditions of this Agreement, is acting independently, and that the City assumes no responsibility or liabilities to any third party in connection with these actions. All services to be performed by Professional pursuant to this Agreement shall be in the capacity of an independent contractor, and not as an agent or employee of the City. Professional shall supervise the performance of its services and shall be entitled to control the manner and means by which its services are to be performed, subject to the terms of this Agreement.

6.8 Right-of-Access. The Professional shall not enter onto private property without lawful right-of-access to perform the required surveys, or other necessary investigations. The Professional will take reasonable precautions to minimize damage to the private and public

property in the performance of such surveys and investigations. Any right-of-access to public or private property shall be obtained in accordance with the Scope of Services.

6.9 Notice. Any notice required or permitted to be delivered hereunder may be sent by first class mail, courier or by confirmed telefax or facsimile to the address specified below, or to such other Party or address as either Party may designate in writing, and shall be deemed received three (3) days after delivery or on the day actually received if sent by courier or otherwise hand delivered:

If intended for City:

Eric Ellwanger
City Manager
City of Allen, Texas
3rd Floor, Allen City Hall
305 Century Parkway
Allen, Texas 75013
214.509.4110 - telephone
214.509.4118 - fax

With a copy to:

Peter G. Smith
Nichols, Jackson, Dillard, Hager & Smith, L.L.P.
1800 Ross Tower
500 North Akard Street
Dallas, Texas 75201
214.965.9900 – telephone
214.965.0010 - fax

If intended for Professional:

**Brinkley Sargent Wiginton
Architects Inc.**

Attn: Hal Sargent
5000 Quorum Dr.
Ste. 600
Dallas, TX 75254
972-960-9770 - telephone

6.10 Insurance.

- (a) Professional shall during the term hereof maintain in full force and effect the following insurance: (i) a commercial general liability policy of insurance for bodily injury, death and property damage including the property of the City, its council, officers, contractors, agents and employees (collectively referred to as the “City”) insuring against all claims, demands or actions relating to the work and services provided by the Professional pursuant to this Agreement with a minimum limit per occurrence for injury to persons (including death), and for property damage and \$2,000,000.00 aggregate including products and completed operations; (ii) automobile liability insurance covering all vehicles owned, non-owned and hired and/or operated by Professional, its officers, agents, independent contractors and employees, and used in the performance of this Agreement with policy limits

of not less than \$1,000,000.00 combined single limit for bodily injury, death and property damage; (iii) statutory Worker's Compensation and Employers Liability covering all of Professional's employees involved in the provision of services under this Agreement with policy limit of not less than \$1,000,000.00; and (iv) Professional Liability with policy limit of not less than \$1,000,000.00 per claim and \$2,000,000.00 in the aggregate, covering negligent acts, errors and omissions by Professional, its contractors, sub-contractors, consultants and employees in the performance of services pursuant to this Agreement. Such professional liability insurance shall be annually renewed and remain in effect for not less than twenty-four (24) months after substantial completion of the services.

- (b) All insurance shall be endorsed to provide the following provisions: (1) name the City, its council, officers, and employees as additional insureds as to all applicable coverage with the exception of Workers Compensation Insurance and Professional Liability; (2) provide for a waiver of subrogation against the City for injuries, including death, property damage, or any other loss to the extent the same is covered by the proceeds of insurance, except for Professional Liability Insurance. A specific endorsement needs to be added to all policies, with a copy of the endorsement provided to the City that indicates the insurance company will provide to the City at least a thirty (30) day prior written notice for cancellation, non-renewal, and/or material changes of the policy. In the event the companies providing the required insurance are prohibited by law to provide any such specific endorsements, the Consultant shall provide at least thirty (30) days prior written notice to the City of any cancellation, non-renewal and/or material changes to any of the policies of insurance. All policies must be written on a primary basis, non-contributory with any insurance coverage and/or self-insurance maintained by the City
- (c) All insurance companies providing the required insurance shall be authorized to transact business in Texas and rated at least "A" by AM Best or other equivalent rating service.
- (d) A certificate of insurance and copies of policy endorsements evidencing the required insurance shall be submitted to the City prior to commencement of services. On every date of renewal of the required insurance policies, the Professional shall cause a certificate of insurance and policy endorsements to be issued evidencing the required insurance herein and delivered to the City. In addition, the Professional shall within ten (10) business days after written request provide the City with certificates of insurance and policy endorsements for the insurance required herein. The delivery of the certificates of insurance and policy endorsements to the City is a condition precedent to the payment of any amounts due to Professional by the City. The failure to provide valid certificates of insurance and policy endorsements shall be deemed a default and/or breach of this Agreement.

6.11 Debarment and Suspension.

- (a) In accordance with 2 CFR section 180.300, the principal of this contract as described in 2 CFR section 180.995 being duly sworn or under penalty of perjury under the laws of the United States, certifies that neither this company nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in this transaction by any federal department or agency, the State of Texas or any of its departments or agencies.
- (b) If during the contract period the principal becomes debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation, the principal shall immediately inform the City of Allen.
- (c) For contracts that are financed by Federal or State grants, the principal agrees that this section will be enforced on each of its subcontractors and will inform the City of Allen of any violations of this section by subcontractors to the contract.
- (d) The certification in this section is a material representation of fact relied upon by the City in entering into this contract.

6.12 Indemnification. PROFESSIONAL DOES HEREBY COVENANT AND CONTRACT TO WAIVE ANY AND ALL CLAIMS, RELEASE, DEFEND, INDEMNIFY, AND HOLD HARMLESS THE CITY, ITS CITY COUNCIL, OFFICERS, EMPLOYEES, AND AGENTS, FROM AND AGAINST ALL LIABILITY, CAUSES OF ACTION, CITATIONS, CLAIMS, COSTS, DAMAGES, DEMANDS, EXPENSES, FINES, JUDGMENTS, LOSSES, PENALTIES OR SUITS, CAUSED BY OR RESULTING FROM THE NEGLIGENCE, INTENTIONAL TORT, INTELLECTUAL PROPERTY INFRINGEMENT, OR FAILURE TO PAY A SUBCONTRACTOR OR SUPPLIER COMMITTED BY THE PROFESSIONAL, ITS AGENT, ITS CONSULTANT UNDER CONTRACT, OR ANY OTHER ENTITY OVER WHICH THE PROFESSIONAL EXERCISES CONTROL SUBJECT TO THE LIMITATIONS IN TEXAS LOCAL GOVERNMENT CODE § 271.904 AND TEXAS CIVIL PRACTICE AND REMEDIES CODE, § 130.002 (B).

INDEMNIFIED ITEMS SHALL INCLUDE REASONABLE ATTORNEYS' FEES AND COSTS, COURT COSTS, AND SETTLEMENT COSTS.

THE PROFESSIONAL'S OBLIGATIONS UNDER THIS SECTION SHALL NOT BE LIMITED TO THE LIMITS OF COVERAGE OF INSURANCE MAINTAINED OR REQUIRED TO BE MAINTAINED BY PROFESSIONAL UNDER THIS AGREEMENT. THIS PROVISION SHALL SURVIVE THE TERMINATION OF THIS AGREEMENT.

6.13 Counterparts. This Agreement may be executed by the Parties hereto in separate counterparts, each of which when so executed and delivered shall be an original, but all such counterparts shall together constitute one and the same instrument. Each counterpart may consist

of any number of copies hereof each signed by less than all, but together signed by all of the Parties hereto.

6.14 Exhibits. The exhibits attached hereto are incorporated herein and made a part hereof for all purposes.

6.15 Prohibition of Boycott Israel. Professional verifies that it does not Boycott Israel and agrees that during the term of this Agreement will not Boycott Israel as that term is defined in Texas Government Code Section 808.001, as amended. This section does not apply if the Professional is a sole proprietor, a non-profit entity or a governmental entity; and only applies if: (i) the Professional has ten (10) or more fulltime employees and (ii) this Agreement has a value of \$100,000.00 or more to be paid under the terms of this Agreement.

6.16 Prohibition of Boycott of Energy Companies. By accepting this purchase order, Vendor verifies that is does not Boycott Energy Companies and agrees that during the term of this Agreement will not Boycott Energy Companies as that term is defined in Texas Government Code Section 809.001, as amended. This section does not apply if Professional (or Contractor) is a sole proprietor, a non-profit entity, or a governmental entity; and only applies if: (i) Professional (or Contractor) has ten (10) or more fulltime employees and (ii) this Agreement has a value of \$100,000.00 or more to be paid under the terms of this Agreement.

6.17 Prohibition of Discrimination Against Firearm Entities and Firearm Trade Associations. By accepting this purchase order, Vendor verifies that is does not have a practice, policy, guidance, or directive that discriminates against a firearm entity or firearm trade association; and (ii) will not discriminate during the term of the contract against a firearm entity or firearm trade association. This section only applies if: (i) Professional (or Contractor) has ten (10) or more fulltime employees and (ii) this Agreement has a value of \$100,000.00 or more to be paid under the terms of this Agreement; and does not apply: (i) if Professional (or Contractor) is a sole proprietor, a non-profit entity, or a governmental entity; (ii) to a contract with a sole-source provider; or (iii) to a contract for which none of the bids from a company were able to provide the required certification.

(Signature Page to Follow)

EXECUTED this _____ day of _____, 2024

CITY OF ALLEN, TEXAS

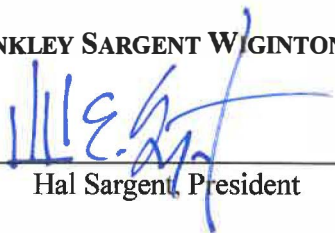
By: _____
Eric Ellwanger, City Manager

ATTEST:

By: _____
Shelley B. George, City Secretary

EXECUTED this 14th day of OCTOBER, 2024

BRINKLEY SARGENT WIGINTON ARCHITECTS, INC.

By: 
Hal Sargent, President



AIA® Document G802® – 2017

Amendment to the Professional Services Agreement

PROJECT: *(name and address)*

Allen Police Building

AGREEMENT INFORMATION:

Date: July 27, 2022

AMENDMENT INFORMATION:

Amendment Number: 001

Date:

OWNER: *(name and address)*

City of Allen
305 Century Pkwy
Allen, TX 75013

ARCHITECT: *(name and address)*

Brinkley Sargent Wiginton Architects,
Inc.
5000 Quorum Drive Suite 600
Dallas, TX 75254

The Owner and Architect amend the Agreement as follows:

Additional services due to increased project scope.

Original Contract was for 70,000 S.F.

Current Building 103,851 S.F.

The Architect's compensation and schedule shall be adjusted as follows:

Compensation Adjustment:

Reference Exhibit A - \$2,262,615

Schedule Adjustment:

N/A

SIGNATURES:

Brinkley Sargent Wiginton
Architects, Inc.

ARCHITECT *(Firm name)*

SIGNATURE

Harold Sargent, AIA, Principal
Architect

PRINTED NAME AND TITLE

September 26, 2024

DATE

City of Allen

OWNER *(Firm name)*

SIGNATURE

PRINTED NAME AND TITLE

DATE

EXHIBIT A**City of Allen Police Building
Current Fee Analysis**

	Initial Contract	City C. Order #1	Subtotal	BSW Revised Fee 8/1/2023	Balance 6/10/2024
Basic	3,146,500	(528,125)	2,618,375	4,507,133	1,888,758
Parking Garage	0	607,225	607,225	607,225	0
Civil Engineering	166,000	73,500	239,500	233,500	(6,000)
Programming	90,000	0	90,000	90,000	0
Public Meetings	4,000	0	4,000	4,000	0
Storm Shelter	15,000	3,000	18,000	18,000	0
TAS	5,270	2,325	7,595	7,595	0
Technology	162,000	0	162,000	262,000	100,000
Landscape	26,000	13,500	39,500	39,500	0
Interior Design Fee	211,500	(211,500)	0	279,857	279,857
Record Drawings	11,000	0	11,000	11,000	0
Code/Fire Protection	0	27,075	27,075	27,075	0
Waterproof Consultant	0	38,000	38,000	38,000	0
Reimb	63,730	0	63,730	63,730	0
Total	3,901,000	25,000	3,926,000	6,188,615	2,262,615

ARTICLE 1 INITIAL INFORMATION

§ 1.1 This Agreement is based on the Initial Information set forth in this Article 1:

A new Police Department Building of approximately 60,000 sq. ft. to be erected on a lot located south of the existing municipal campus east of Century Parkway, North of Butler Drive in Allen, Texas. The Owner's budget for the Cost of the Work will be established following Programming Phase.

§ 1.2 The Owner and Architect may rely on the Initial Information. Both parties, however, recognize that such information may materially change and, in that event, the Owner and the Architect shall appropriately adjust the project schedule.

ARTICLE 2 ARCHITECT'S RESPONSIBILITIES

§ 2.1 The Architect shall provide the professional services as set forth in this Agreement.

§ 2.2 The Architect and Architect's Consultants shall perform its services in accordance with laws, codes, rules, and regulations applicable for the location of the Project consistent with the professional skill and care ordinarily provided by architects and other consultants practicing in the same or similar locality under the same or similar circumstances. Neither the law nor the ordinary and reasonable standard of care places the burden of perfect performance of professional services on the Architect or Architect's Consultants. The Owner acknowledges that this design effort is a unique one-time creative endeavor that does not have the benefit of testing, that some level of imperfection must be expected, that the construction documents may contain errors and omissions, and that the missing and corrective information shall be developed during the construction process. When an error or omission is discovered, the Architect or Architect's Consultants shall provide all necessary design services and documentation for corrective action at no cost to the Owner. The Architect and Consultants shall perform services as expeditiously as is consistent with such professional skill and care and the orderly progress of the Project. The Architect makes no warranties, either express or implied, with respect to services provided under this Agreement.

§ 2.3 The Architect shall identify a representative authorized to act on behalf of the Architect with respect to the Project.

§ 2.4 Except with the Owner's knowledge and consent, the Architect shall not engage in any activity, or accept any employment, interest or contribution that would reasonably appear to compromise the Architect's professional judgment with respect to this Project.

ARTICLE 3 SCOPE OF ARCHITECT'S BASIC SERVICES

§ 3.1 The Architect's Basic Services consist of those described in Article 3 and include usual and customary structural, mechanical, and electrical engineering services. Services not set forth in this Article 3 are Additional Services.

§ 3.1.1 The Architect shall manage the Architect's services, consult with the Owner, research applicable design criteria, attend Project meetings, communicate with members of the Project team and report progress to the Owner.

§ 3.1.2 The Architect shall coordinate its services with those services provided by the Owner and the Owner's consultants. The Architect shall be entitled to rely on the accuracy and completeness of services and information furnished by the Owner and the Owner's consultants. The Architect shall provide prompt written notice to the Owner if the Architect becomes aware of any error, omission or inconsistency in such services or information.

§ 3.1.3 As soon as practicable after the date of this Agreement, the Architect shall submit for the Owner's approval a schedule for the performance of the Architect's services. The schedule initially shall include anticipated dates for the commencement of construction and for Substantial Completion of the Work as set forth in the Initial Information. The schedule shall include allowances for periods of time required for the Owner's review, for the performance of the Owner's consultants, and for approval of submissions by authorities having jurisdiction over the Project. Once approved by the Owner, time limits established by the schedule shall not, except for reasonable cause, be exceeded by the Architect or Owner. With the Owner's approval, the Architect shall adjust the schedule, if necessary as the Project proceeds until the commencement of construction.

§ 3.1.4 The Architect shall not be responsible for an Owner's directive or substitution made without the Architect's approval.

§ 3.1.5 The Architect shall, at appropriate times, contact the governmental authorities required to approve the Construction Documents and the entities providing utility services to the Project. In designing the Project, the Architect shall respond to applicable design requirements imposed by such governmental authorities and by such entities providing utility services.

§ 3.1.6 The Architect shall assist the Owner in connection with the Owner's responsibility for filing documents required for the approval of governmental authorities having jurisdiction over the Project. Cost of said filings shall be paid by the Owner.

§ 3.2 SCHEMATIC DESIGN PHASE SERVICES

§ 3.2.1 The Architect shall consult with City to define and clarify City's requirements for the work and available data. The Architect shall define the scope of the project in the form of a space program summary, design drawings, sketches considering space, function, adjacencies, applicable codes, and exterior aesthetic. Also, review other information furnished by the Owner, and shall review laws, codes, and regulations applicable to the Architect's services.

§ 3.2.2 The Architect shall prepare a preliminary evaluation of the program, schedule, budget for the Cost of the Work, Project site, and the proposed procurement or delivery method and other Initial Information, each in terms of the other, to ascertain the requirements of the Project. The Architect shall notify the Owner of (1) any inconsistencies discovered in the information, and (2) other information or consulting services that may be reasonably needed for the Project.

§ 3.2.3 The Architect shall present its preliminary evaluation to the Owner and shall discuss with the Owner alternative approaches to design and construction of the Project. The Architect shall reach an understanding with the Owner regarding the requirements of the Project.

§ 3.2.4 Based on the Project's requirements agreed upon with the Owner, the Architect shall prepare and present for the Owner's approval a preliminary design illustrating the scale and relationship of the Project components.

§ 3.2.5 Based on the Owner's approval of the preliminary design, the Architect shall prepare Schematic Design Documents for the Owner's approval. The Schematic Design Documents shall consist of drawings and other documents including a site plan, if appropriate, and preliminary building plans, sections and elevations; and may include some combination of perspective sketches or digital modeling. Preliminary selections of major building systems and construction materials shall be noted on the drawings or described in writing.

§ 3.2.5.1 The Architect shall consider the value of alternative materials, building systems and equipment, together with other considerations based on program and aesthetics in developing a design for the Project that is consistent with the Owner's program, schedule and budget for the Cost of the Work.

§ 3.2.6 The Architect shall submit to the Owner an estimate of the Cost of the Work prepared in accordance with Section 6.3.

§ 3.2.7 The Architect shall submit the Schematic Design Documents to the Owner, and request the Owner's approval. The Architect will provide to the Owner one set of printed documents, an electronic (PDF) set of documents and a CAD set.

§ 3.3 DESIGN DEVELOPMENT PHASE SERVICES

§ 3.3.1 Based on the Owner's approval of the Schematic Design Documents, and on the Owner's authorization of any adjustments in the Project requirements and the budget for the Cost of the Work, the Architect shall prepare Design Development Documents for the Owner's approval. The Design Development Documents shall illustrate and describe the development of the approved Schematic Design Documents and shall consist of drawings and other documents including plans, sections, elevations, typical construction details, and diagrammatic layouts of building systems to fix and describe the size and character of the Project as to architectural, structural, mechanical and electrical systems, and such other elements as may be appropriate. The Design Development

Documents shall also include outline specifications that identify major materials and systems and establish in general their quality levels.

§ 3.3.2 The Architect shall update the estimate of the Cost of the Work.

§ 3.3.3 The Architect shall submit the Design Development documents to the Owner, advise the Owner of any adjustments to the estimate of the Cost of the Work, and request the Owner's approval. The Architect will provide to the Owner one set of printed documents, an electronic (PDF) set of documents and a CAD set.

§ 3.4 CONSTRUCTION DOCUMENTS PHASE SERVICES

§ 3.4.1 Based on the Owner's approval of the Design Development Documents, and on the Owner's authorization of any adjustments in the Project requirements and the budget for the Cost of the Work, the Architect shall prepare Construction Documents for the Owner's approval. The Construction Documents shall illustrate and describe the further development of the approved Design Development Documents and shall consist of Drawings and Specifications setting forth in detail the quality levels of materials and systems and other requirements for the construction of the Work. These Documents may contain inconsistencies and omissions inherent to the Design and Construction Process. The Owner and Architect acknowledge that in order to construct the Work the Contractor will provide additional information, including Shop Drawings, Product Data, Samples and other similar submittals, which the Architect shall review in accordance with Section 3.6.4.

§ 3.4.2 The Architect shall incorporate into the Construction Documents the design requirements of governmental authorities having jurisdiction over the Project.

§ 3.4.3 During the development of the Construction Documents, the Architect shall assist the City Purchasing Department if needed in the development and preparation of (1) bidding and procurement information that describes the time, place and conditions of bidding, including bidding or proposal forms; (2) the form of agreement between the Owner and Contractor; and (3) the Conditions of the Contract for Construction (General, Supplementary and other Conditions). The Architect shall also compile a project manual that includes the Conditions of the Contract for Construction and Specifications and may include bidding requirements and sample forms.

§ 3.4.4 The Architect shall submit the Construction Documents to the Owner and request the Owner's approval. The Architect will provide to the Owner one set of printed documents, an electronic (PDF) set of documents and a CAD set.

§ 3.5 BIDDING OR NEGOTIATION PHASE SERVICES

§ 3.5.1 GENERAL

The Architect shall assist the City Purchasing Department if needed in establishing a list of prospective contractors. Following the Owner's approval of the Construction Documents, the Architect shall assist the City Purchasing Department if needed in (1) obtaining either competitive bids or negotiated proposals; (2) confirming responsiveness of bids or proposals; (3) determining the successful bid or proposal, if any; and, (4) awarding and preparing contracts for construction.

§ 3.5.2 COMPETITIVE BIDDING

§ 3.5.2.1 Bidding Documents shall consist of bidding requirements and proposed Contract Documents or as required by City Purchasing Department.

§ 3.5.2.2 The Architect shall assist the City Purchasing Department if needed in bidding the Project by

- .1 arranging for a local reproduction company to reproduce, distribute and maintain a log of distribution of the Bidding Documents distributed to prospective bidders. Cost of reproduction to be paid for by prospective bidders;
- .2 organizing and conducting a pre-bid conference for prospective bidders;
- .3 preparing responses to questions from prospective bidders and providing clarifications and interpretations of the Bidding Documents to all prospective bidders in the form of addenda (which shall be issued via electronic PDF); and
- .4 organizing and conducting the opening of the bids, and subsequently documenting and distributing the bidding results, as directed by the City Purchasing Department if needed.

§ 3.5.2.3 The Architect shall consider requests for substitutions, if the Bidding Documents permit substitutions, and shall prepare and distribute addenda identifying approved substitutions to all prospective bidders.

§ 3.6 CONSTRUCTION PHASE SERVICES

§ 3.6.1 GENERAL

§ 3.6.1.1 The Architect shall provide administration of the Contract between the Owner and the Contractor as set forth below and in AIA Document A201™–2017, General Conditions of the Contract for Construction. If the Owner and Contractor modify AIA Document A201–2017, those modifications shall not affect the Architect's services under this Agreement unless the Owner and the Architect amend this Agreement.

§ 3.6.1.2 The Architect shall advise and consult with the Owner during the Construction Phase Services. The Architect shall have authority to act on behalf of the Owner only to the extent provided in this Agreement. The Architect shall not have control over, charge of, or responsibility for the construction means, methods, techniques, sequences or procedures, or for safety precautions and programs in connection with the Work, nor shall the Architect be responsible for the Contractor's failure to perform the Work in accordance with the requirements of the Contract Documents. The Architect shall be responsible for the Architect's negligent acts or omissions, but shall not have control over or charge of, and shall not be responsible for, acts or omissions of the Contractor or of any other persons or entities performing portions of the Work. The Architect and his Engineers shall not be required to furnish or pay for Construction Materials and Labor not contained within the Construction Documents whether these items were an omission or added during Construction.

§ 3.6.1.3 Subject to Section 4.3, the Architect's responsibility to provide Construction Phase Services commences with the award of the Contract for Construction and terminates on the date the Architect issues the final Certificate for Payment.

§ 3.6.2 EVALUATIONS OF THE WORK

§ 3.6.2.1 The Architect shall visit the site at intervals appropriate to the stage of construction, or as otherwise required in Section 4.3.3, to become generally familiar with the progress and quality of the portion of the Work completed, and to determine, in general, if the Work observed is being performed in a manner indicating that the Work, when fully completed, will be in accordance with the Contract Documents. However, the Architect shall not be required to make exhaustive or continuous on-site inspections to check the quality or quantity of the Work. On the basis of the site visits, the Architect shall keep the Owner reasonably informed about the progress and quality of the portion of the Work completed, and report to the Owner (1) known deviations from the Contract Documents and from the most recent construction schedule submitted by the Contractor, and (2) defects and deficiencies observed in the Work.

§ 3.6.2.2 The Architect has the authority to reject Work that does not conform to the Contract Documents. Whenever the Architect considers it necessary or advisable, the Architect shall have the authority to require inspection or testing of the Work in accordance with the provisions of the Contract Documents, whether or not such Work is fabricated, installed or completed. However, neither this authority of the Architect nor a decision made in good faith either to exercise or not to exercise such authority shall give rise to a duty or responsibility of the Architect to the Contractor, Subcontractors, material and equipment suppliers, their agents or employees or other persons or entities performing portions of the Work.

§ 3.6.2.3 The Architect shall interpret and decide matters concerning performance under, and requirements of, the Contract Documents on written request of either the Owner or Contractor. The Architect's response to such requests shall be made in writing within any time limits agreed upon or otherwise with reasonable promptness.

§ 3.6.2.4 Interpretations and decisions of the Architect shall be consistent with the intent of and reasonably inferable from the Contract Documents and shall be in writing or in the form of drawings. When making such interpretations and decisions, the Architect shall endeavor to secure faithful performance by both Owner and Contractor, shall not show partiality to either, and shall not be liable for results of interpretations or decisions rendered in good faith. The Architect's decisions on matters relating to aesthetic effect shall be final if consistent with the intent expressed in the Contract Documents.

§ 3.6.2.5 Unless the Owner and Contractor designate another person to serve as an Initial Decision Maker, the Architect shall render initial decisions on Claims between the Owner and Contractor as provided in the Contract Documents.

§ 3.6.3 CERTIFICATES FOR PAYMENT TO CONTRACTOR

§ 3.6.3.1 The Architect shall review and certify the amounts due the Contractor and shall issue certificates in such amounts. The Architect's certification for payment shall constitute a representation to the Owner, based on the Architect's evaluation of the Work as provided in Section 3.6.2 and on the data comprising the Contractor's Application for Payment, that, to the best of the Architect's knowledge, information and belief, the Work has progressed to the point indicated and that the quality of the Work is in accordance with the Contract Documents. The foregoing representations are subject (1) to an evaluation of the Work for conformance with the Contract Documents upon Substantial Completion, (2) to results of subsequent tests and inspections, (3) to correction of minor deviations from the Contract Documents prior to completion, and (4) to specific qualifications expressed by the Architect.

§ 3.6.3.2 The issuance of a Certificate for Payment shall not be a representation that the Architect has (1) made exhaustive or continuous on-site inspections to check the quality or quantity of the Work, (2) reviewed construction means, methods, techniques, sequences or procedures, (3) reviewed copies of requisitions received from Subcontractors and material suppliers and other data requested by the Owner to substantiate the Contractor's right to payment, or (4) ascertained how or for what purpose the Contractor has used money previously paid on account of the Contract Sum.

§ 3.6.3.3 The Architect shall maintain a record of the Applications and Certificates for Payment.

§ 3.6.4 SUBMITTALS

§ 3.6.4.1 The Architect shall review the Contractor's submittal schedule and shall not unreasonably delay or withhold approval. The Architect's action in reviewing submittals shall be taken in accordance with the approved submittal schedule or, in the absence of an approved submittal schedule, with reasonable promptness while allowing sufficient time in the Architect's professional judgment to permit adequate review.

§ 3.6.4.2 In accordance with the Architect-approved submittal schedule, the Architect shall review and approve or take other appropriate action upon the Contractor's submittals such as Shop Drawings, Product Data and Samples, but only for the limited purpose of checking for conformance with information given and the design concept expressed in the Contract Documents. Review of such submittals is not for the purpose of determining the accuracy and completeness of other information such as dimensions, quantities, and installation or performance of equipment or systems, which are the Contractor's responsibility. The Architect's review shall not constitute approval of safety precautions or, unless otherwise specifically stated by the Architect, of any construction means, methods, techniques, sequences or procedures. The Architect's approval of a specific item shall not indicate approval of an assembly of which the item is a component.

§ 3.6.4.3 If the Contract Documents specifically require the Contractor to provide professional design services or certifications by a design professional related to systems, materials or equipment, the Architect shall specify the appropriate performance and design criteria that such services must satisfy. The Architect shall review shop drawings and other submittals related to the Work designed or certified by the design professional retained by the Contractor that bear such professional's seal and signature when submitted to the Architect. The Architect shall be entitled to rely upon the adequacy, accuracy and completeness of the services, certifications and approvals performed or provided by such design professionals.

§ 3.6.4.4 The Architect shall review and respond to requests for information about the Contract Documents. The Architect shall set forth in the Contract Documents the requirements for requests for information. Requests for information shall include, at a minimum, a detailed written statement that indicates the specific Drawings or Specifications in need of clarification and the nature of the clarification requested. The Architect's response to such requests shall be made in writing within any time limits agreed upon, or otherwise with reasonable promptness. If appropriate, the Architect shall prepare and issue supplemental Drawings and Specifications in response to requests for information.

§ 3.6.4.5 The Architect shall maintain a record of submittals and copies of submittals supplied by the Contractor in accordance with the requirements of the Contract Documents.

§ 3.6.4.6 All submissions and responses shall be via electronic correspondence.

§ 3.6.5 CHANGES IN THE WORK

§ 3.6.5.1 The Architect may authorize minor changes in the Work that are consistent with the intent of the Contract Documents and do not involve an adjustment in the Contract Sum or an extension of the Contract Time. Subject to the provisions of Section 4.3, the Architect shall prepare Change Orders and Construction Change Directives for the Owner's approval and execution in accordance with the Contract Documents.

§ 3.6.5.2 The Architect shall maintain records relative to changes in the Work.

§ 3.6.6 PROJECT COMPLETION

§ 3.6.6.1 The Architect shall visit the site conduct inspections to determine the date or dates of Substantial Completion and the date of final completion; issue Certificates of Substantial Completion; receive from the Contractor and forward to the Owner, for the Owner's review and records, written warranties and related documents required by the Contract Documents and assembled by the Contractor; and issue a final Certificate for Payment based upon a final inspection indicating the Work complies with the requirements of the Contract Documents.

§ 3.6.6.2 The Architect's site visit shall be conducted with the Owner to check conformance of the Work with the requirements of the Contract Documents and to verify the accuracy and completeness of the list submitted by the Contractor of Work to be completed or corrected.

§ 3.6.6.3 When the Work is found to be substantially complete, the Architect shall inform the Owner about the balance of the Contract Sum remaining to be paid the Contractor, including the amount to be retained from the Contract Sum, if any, for final completion or correction of the Work.

§ 3.6.6.4 The Architect shall forward to the Owner the following information received from the Contractor: (1) consent of surety or sureties, if any, to reduction in or partial release of retainage or the making of final payment; (2) affidavits, receipts, releases and waivers of liens or bonds indemnifying the Owner against liens; and (3) any other documentation required of the Contractor under the Contract Documents.

§ 3.6.6.5 Upon request of the Owner, and prior to the expiration of one year from the date of Substantial Completion, the Architect shall, without additional compensation, conduct a meeting with the Owner to review the facility operations and performance.

ARTICLE 4 ADDITIONAL SERVICES

§ 4.1 Additional Services listed below are not included in Basic Services but may be required for the Project. The Architect shall provide the listed Additional Services only if specifically designated in the table below as the Architect's responsibility, and the Owner shall compensate the Architect as provided in Section 11.2.

Additional Services	Responsibility (Architect, Owner or Not Provided)	Location of Service Description
§ 4.1.1 Programming	Architect	4.2.1
§ 4.1.2 Multiple preliminary designs	Architect	
§ 4.1.3 Measured drawings	Not Provided	
§ 4.1.4 Existing facilities surveys	Not Provided	
§ 4.1.5 Site Evaluation and Planning	Architect	
§ 4.1.6 Building information modeling	Architect	4.2.2
§ 4.1.7 Civil engineering	Architect	Exhibit F
§ 4.1.8 Landscape design	Architect	Exhibit G
§ 4.1.9 Architectural Interior Design	Architect	Exhibit K
§ 4.1.10 Value Analysis	Not Provided	
§ 4.1.11 Detailed cost estimating	Architect	Exhibit L
§ 4.1.12 On-site project representation	Not Provided	
§ 4.1.13 Conformed construction documents	Not Provided	
§ 4.1.14 As-Designed Record drawings	Not Provided	
§ 4.1.15 As-Constructed Record drawings	Architect	4.2.3
§ 4.1.16 Post occupancy evaluation	Not Provided	
§ 4.1.17 Facility Support Services	Not Provided	
§ 4.1.18 Tenant-related services	Not Provided	
§ 4.1.19 Coordination of Owner's consultants	Not Provided	
§ 4.1.20 Telecommunications/data design	Architect	Exhibit H
§ 4.1.21 Security Evaluation and Planning	Architect	Exhibit H
§ 4.1.22 Commissioning	Not Provided	
§ 4.1.23 Extensive environmentally responsible design	Not Provided	
§ 4.1.24 LEED® Certification	Not Provided	
§ 4.1.25 Fast-track design services	Not Provided	
§ 4.1.26 Historic Preservation	Not Provided	
§ 4.1.27 Furniture, Furnishings, and Equipment Design	Architect	Exhibit K
§ 4.1.28 Topographic Survey Services	Architect	Exhibit F
§ 4.1.29 Platting Services	Architect	Exhibit F
§ 4.1.30 Geotechnical Investigation	Not Provided	
§ 4.1.31 TAS Review / Inspection	Architect	Exhibit J
§ 4.1.32 ICC 500-2014 Third Party Review	Not Provided	

§ 4.2 Description of each Additional Service designated in Section 4.1 as the Architect's responsibility:

Item 4.2.1 - Programming: Development of a building program for use during Schematic Design Phase. Architect will meet with all designated police departments to establish the space needs of the project.

Deliverables:

- A. Program of spaces with associated drawings as required to define space needs.
- B. Organizational Charts showing growth over 30 years.
- C. Comparable cities staffing charts.
- D. Car count analysis.
- E. Deliverables will be included in a PowerPoint presentation. Programming Phase will not include written narratives or additional Exhibits for external use.
- F. Cost estimates of itemized desired needs versus wants to derive a total project budget.

Item 4.2.2 – Building Information Modeling: The Architect may, at their sole discretion, utilize BIM while fulfilling their scope of services. No extra fee will be charged for this use of BIM.

Item 4.2.3 – As-Constructed Record Drawings: The A/E team shall update the electronic files (BIM or CAD) prepared for bidding the project with regard to changes or clarifications necessitated during

construction due to an error or omission by the design team and provide them to the Owner in PDF format as a part of Basic Services.

§ 4.3 Additional Services may be provided after execution of this Agreement, without invalidating the Agreement. Except for services required due to the fault of the Architect, any Additional Services provided in accordance with this Section 4.3 shall entitle the Architect to compensation pursuant to Section 11.3 and an appropriate adjustment in the Architect's schedule.

§ 4.3.1 Upon recognizing the need to perform the following Additional Services, the Architect shall notify the Owner with reasonable promptness and explain the facts and circumstances giving rise to the need. The Architect shall not proceed to provide the following services until the Architect receives the Owner's written authorization:

- .1 Services necessitated by the Owner's request for extensive environmentally responsible design alternatives, such as unique system designs, in-depth material research, energy modeling, or LEED® certification;
- .2 Changing or editing previously prepared Instruments of Service necessitated by the enactment or revision of codes, laws or regulations or official interpretations;
- .3 Services necessitated by decisions of the Owner not rendered in a timely manner or any other failure of performance on the part of the Owner or the Owner's consultants or contractors;
- .4 Preparation of design and documentation for alternate bid or proposal requests not included in the final design development construction budget and Architect's fee proposed by the Owner;
- .5 Not used
- .6 Preparation for, and attendance at a dispute resolution proceeding or legal proceeding, except where the Architect is party thereto;
- .7 Evaluation of the qualifications of subcontractor bids or persons providing subcontractor proposals;
- .8 Consultation concerning replacement of Work resulting from fire or other cause during construction.

ARTICLE 5 OWNER'S RESPONSIBILITIES

§ 5.1 Unless otherwise provided for under this Agreement, the Owner shall provide information in a timely manner regarding requirements for and limitations on the Project, including a written program which shall set forth the Owner's objectives, schedule, constraints and criteria, including space requirements and relationships, flexibility, expandability, special equipment, systems and site requirements. Within 15 working days after receipt of a written request from the Architect, the Owner shall furnish the requested information as necessary and relevant for the Architect to evaluate, give notice of or enforce lien rights.

§ 5.2 The Owner shall establish and periodically update the Owner's budget for the Project, including (1) the budget for the Cost of the Work as defined in Section 6.1; (2) the Owner's other costs; and, (3) reasonable contingencies related to all of these costs. If the Owner significantly increases or decreases the Owner's budget for the Cost of the Work, the Owner shall notify the Architect. The Owner and the Architect shall thereafter agree to a corresponding change in the Project's scope and quality.

§ 5.3 The Owner shall identify a representative authorized to act on the Owner's behalf with respect to the Project. The Owner shall render decisions and approve the Architect's submittals in a timely manner in order to avoid unreasonable delay in the orderly and sequential progress of the Architect's services.

§ 5.4 Unless provided by the Architect under Section 4.1, the Owner shall furnish surveys to describe physical characteristics, legal limitations and utility locations for the site of the Project, and a written legal description of the site. The surveys and legal information shall include, as applicable, grades and lines of streets, alleys, pavements and adjoining property and structures; designated wetlands; adjacent drainage; rights-of-way, restrictions, easements, encroachments, zoning, deed restrictions, boundaries and contours of the site; locations, dimensions and necessary data with respect to existing buildings, other improvements and trees; and information concerning available utility services and lines, both public and private, above and below grade, including inverts and depths. All the information on the survey shall be referenced to a Project benchmark.

§ 5.5 Unless provided by the Architect under Section 4.1, the Owner shall furnish services of geotechnical engineers, which may include but are not limited to test borings, test pits, determinations of soil bearing values, percolation tests, evaluations of hazardous materials, seismic evaluation, ground corrosion tests and resistivity

tests, including necessary operations for anticipating subsoil conditions, with written reports and appropriate recommendations.

§ 5.6 The Owner shall coordinate the services of its own consultants with those services provided by the Architect. Upon the Architect's request, the Owner shall furnish copies of the scope of services in the contracts between the Owner and the Owner's consultants. The Owner shall furnish the services of consultants other than those designated in this Agreement, or authorize the Architect to furnish them as an Additional Service, when the Architect requests such services and demonstrates that they are reasonably required by the scope of the Project. The Owner shall require that its consultants maintain professional liability insurance as appropriate to the services provided.

§ 5.7 The Owner shall furnish tests, inspections and reports required by law or the Contract Documents, such as structural, mechanical, and chemical tests, tests for air and water pollution, and tests for hazardous materials.

§ 5.8 The Owner shall furnish all legal, insurance and accounting services, including auditing services, that may be reasonably necessary at any time for the Project to meet the Owner's needs and interests.

§ 5.9 The Owner shall provide prompt written notice to the Architect if the Owner becomes aware of any fault or defect in the Project, including errors, omissions or inconsistencies in the Architect's Instruments of Service.

§ 5.10 Except as otherwise provided in this Agreement, or when direct communications have been specially authorized, the Owner shall endeavor to communicate with the Contractor and the Architect's consultants through the Architect about matters arising out of or relating to the Contract Documents. The Owner shall promptly notify the Architect of any direct communications that may affect the Architect's services.

§ 5.11 Before executing the Contract for Construction, the Owner shall coordinate the Architect's duties and responsibilities set forth in the Contract for Construction with the Architect's services set forth in this Agreement. The Owner shall provide the Architect a copy of the executed agreement between the Owner and Contractor, including the General Conditions of the Contract for Construction.

§ 5.12 The Owner shall provide the Architect access to the Project site prior to commencement of the Work and shall obligate the Contractor to provide the Architect access to the Work wherever it is in preparation or progress.

§ 5.13 The Owner shall provide Texas Accessibility Standard review and inspection services for the project

ARTICLE 6 COST OF THE WORK

§ 6.1 For purposes of this Agreement, the Cost of the Work shall be the total cost to the Owner to construct all elements of the Project designed or specified by the Architect prior to or after bidding and shall include contractors' general conditions costs, overhead and profit. The Cost of the Work does not include the compensation of the Architect, the costs of the land, rights-of-way, financing, contingencies for changes in the Work or other costs that are the responsibility of the Owner.

§ 6.2 The Owner's budget for the Cost of the Work may be adjusted throughout the Project as required under Sections 5.2, 6.4 and 6.5. Evaluations of the Owner's budget for the Cost of the Work, the preliminary estimate of the Cost of the Work and updated estimates of the Cost of the Work prepared by the Architect, represent the Architect's judgment as a design professional. It is recognized, however, that neither the Architect nor the Owner has control over the cost of labor, materials or equipment; the Contractor's methods of determining bid prices; or competitive bidding, market or negotiating conditions. Accordingly, the Architect cannot and does not warrant or represent that bids or negotiated prices will not vary from the Owner's budget for the Cost of the Work or from any estimate of the Cost of the Work or evaluation prepared or agreed to by the Architect.

§ 6.3 In preparing estimates of the Cost of Work, the Architect shall be permitted to include contingencies for design, bidding and price escalation; to determine what materials, equipment, component systems and types of construction are to be included in the Contract Documents; to make reasonable adjustments in the program and scope of the Project; and to include in the Contract Documents alternate bids without cost to Owner as may be necessary to adjust the estimated Cost of the Work to meet the Owner's budget for the Cost of the Work. The Architect's estimate of the Cost of the Work shall be based on current area, volume or similar conceptual

estimating techniques. If the Owner requests detailed cost estimating services, the Architect shall provide such services as an Additional Service under Article 4.

§ 6.4 If the Bidding or Negotiation Phase has not commenced within 90 days after the Architect submits the Construction Documents to the Owner, through no fault of the Architect, the Owner's budget for the Cost of the Work shall be adjusted to reflect changes in the general level of prices in the applicable construction market.

§ 6.5 If at any time previous to the start of construction documents, the Architect's estimate of the Cost of the Work exceeds the Owner's budget for the Cost of the Work, the Architect without additional cost to Owner shall make appropriate recommendations to the Owner to adjust the Project's size, quality or budget for the Cost of the Work.

§ 6.6 If after bidding, the lowest bona fide bid or negotiated proposal exceeds to Owner's budget, the Architect, with additional compensation, shall modify the Construction Documents as necessary to comply with the Owner's budget for the Cost of the Work at the conclusion of the Construction Documents Phase Services, or the budget as adjusted under Section 6.6.1. The Architect shall be entitled to compensation in accordance with this Agreement for all services performed whether or not the Construction Phase is commenced.

ARTICLE 7 SPECIAL TERMS AND CONDITIONS

Special terms and conditions that modify this Agreement are as follows:

§ 7.1 CHANGE ORDERS

Omissions: If the Architect fails to include or omits an item from the Contract Documents, which was fully anticipated to be included in the Project, thereby necessitating the need for a Change Order, the Architect will not receive a fee for work associated with the Change Order.

§ 7.2 STANDARD OF CARE/CONTINGENCY

In performing Architectural Services, the Architect will strive to use that degree of care and skill ordinarily exercised under similar circumstances by competent members of the architecture profession. Notwithstanding compliance with this standard of care, the Owner can normally anticipate that some changes and adjustments in the project will be required either during or after construction. The Owner agrees to establish a construction contingency fund (minimum 3% of construction cost) to cover the reasonably anticipated costs of these changes and adjustments as well as, changes due to code revisions and field conditions. The Owner agrees not to seek any costs related to Article 12.2 items from Architect unless the aforementioned contingency funds are exhausted by non-Owner initiated changes.

§ 7.3 ADA COMPLIANCE

The Americans with Disabilities Act ("ADA") provides that it is a violation of the ADA to design and construct a facility for first occupancy later than January 26, 1993 that does not meet the accessibility and usability requirements of the ADA except where an entity can demonstrate that it is structurally impractical to do so. The parties acknowledge that the ADA and the corresponding State of Texas laws regarding disability barriers ("State Law") will be subject to various and possible contradictory interpretations. The Architect, therefore will use reasonable professional efforts to interpret and comply with all applicable ADA and State Law requirements and other federal, state, and local laws, rules, codes, ordinances and regulations as they apply to the Project. The Architect will endeavor to achieve compliance with the ADA, using its best judgment and approvals of available Consultants and Government Officials.

§ 7.4 STRUCTURAL CERTIFICATION OF AS-BUILT CONDITIONS

This contract provides for structural site observation during construction consistent with normal standard of care as outlined in this document. This scope of work does not include structural services to inspect all the structural as-built conditions necessary to provide the Owner with a "Letter of Structural Certification" of the building at the time of substantial completion. These services can be made available as an additional service.

§ 7.5 ARCHITECTURAL REGISTRATION

The Texas Board of Architectural Examiners, Hobby Building, 333 Guadalupe, Suite 2-350, Austin, Texas 78701 (512-305-9000) has jurisdiction over individuals licensed where the Architect's Registration Law, Texas Civil Status, Article 249a.

§ 7.6 SPECIAL INSPECTIONS

Recent code language contains references to “Special Inspections” for various parts of the construction process. The industry is currently meting these requirements by assigning responsibilities to various Consultants involved in the Construction Industry (Commissioning Agents, Materials Testing Lab, Fire Protection and Smoke Evaluation Consultants, Mechanical and Structural Engineers and Architects. Since these inspections are new to the industry, each jurisdiction has their own interpretation as to how “Special Inspections” are accomplished beyond Standard Construction Administration Activities and what party should be responsible for them. The Design Team will work with the appropriate jurisdiction during the Design Phase of the Project to identify requirements and responsibilities. Many of these inspections may be performed as part of Standard CA services but some may require Additional Services Fees from the Design Team or outside Consultants. These “Special Inspections” must be identified prior to the start of construction in order to be performed at the appropriate time prior to receiving a “Certificate of Occupancy.”

§ 7.7 STATUTES OF LIMITATION AND REPOSE

Causes of action between the parties to this Agreement pertaining to acts or failures to act shall be deemed to have accrued and the applicable statues of limitations shall commence to run not later than either the date of Substantial Completion for acts or failures to act occurring prior to Substantial Completion or the date of issuance of the final Certificate for Payment for acts or failures to act occurring after Substantial Completion. In no event shall such statues of limitations commence to run any later than the date when the Architect’s Services are substantially completed.

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION
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AGENDA DATE:	October 22, 2024
AGENDA CAPTION:	Authorize the City Manager to execute an agreement for Meet and Confer with the Allen Firefighters Association, IAFF Local 3453.
STAFF RESOURCE:	Eric Strong, Deputy City Manager
PREVIOUS COUNCIL ACTION:	November 2021 - approved an agreement with the Allen Firefighters Association, IAFF 3453.
STRATEGIC PLANNING GOAL:	Safe and Livable Community for All.

BACKGROUND

In 2021, the City Council approved the first-ever Meet and Confer agreements with the Allen Police Association (APA) and the Allen Fire Association (AFA). Those initial agreements were for three years and have now expired. For the past several months, staff has been working with the APA and AFA leadership to renew and update the agreements. Highlights of the new agreement with AFA include:

1. Currently, we conduct a market study annually, and pay for the subsequent year is based on a calculation that looks at pay ranges from 10 market cities. Once we determine that pay rate, we add 2% to capture the fact that everyone else is making pay adjustments once the new year starts that were not captured in our data. We are proposing increasing the 2% above market increase to 2.5% for the next two years, and 3% for the two years following that. This will help us ensure that we aren't immediately falling behind market once the new fiscal year begins.
2. We've added an Ambulance Assignment Pay of \$2 per hour for time worked while working on the ambulance. Being assigned to the ambulance is a much more intense and demanding shift than normal, and so this provides some extra compensation in recognition of that.
3. We've increased our Education Pay for an Associate's Degree (from \$50 to \$60), Bachelor's (from \$75 to \$110) and Master's (from \$110 to \$150) to better match our market city comparisons.
4. We've added a Field Training Officer Pay that will compensate Training Officers at a rate of \$250 per month.
5. We've modified how we account for Association Business Leave (ABL). ABL is when association members donate a portion of their leave time to the Association leadership team for use in official Association Business. We've made some minor modifications to how this is accrued and carried over from year to year to make it administratively less burdensome.

The AFA membership had an opportunity to anonymously vote on this agreement and it was approved by a vote of 53-1.

BUDGETARY IMPACT

The annual budget this year included \$250,000 for Meet and Confer provisions, and this agreement

(combined with the APA agreement) will be within the budgeted amount.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to authorize the City Manager to execute an agreement for Meet & Confer with the Allen Firefighters Association, IAFF Local 3453.

ATTACHMENT(S)

[Agreement](#)

**MEET AND CONFER AGREEMENT
BETWEEN
THE CITY OF ALLEN, TEXAS
AND
THE ALLEN FIREFIGHTERS ASSOCIATION,
IAFF LOCAL 3453**

October 1, 2024

Through

September 30, 2028

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ARTICLE 1 – DEFINITIONS

The following terms, abbreviations, and acronyms shall have the meaning stated below whenever referenced or used throughout this document or as defined within a specific article.

- **ABL** shall mean Association Business Leave.
- **AFFA** shall mean the Allen Fire Fighters Association, IAFF Local 3453.
- **Agreement** shall mean the current Agreement as negotiated through the Meet & Confer process.
- **Association** shall mean the Allen Firefighters Association (AFFA), IAFF Local 3453.
- **City** shall mean the City of Allen, Texas.
- **Compensation Plan** shall mean the City of Allen document entitled “Compensation Plan Administration—Sworn Positions,” dated June 2014 and attached in full to this Agreement as Exhibit 1 and incorporated by reference.
- **Department** shall mean the Allen Fire Department.
- **Fire Fighter** shall mean permanent, full-time Fire Department personnel employed in the rank of Battalion Chief, Captain, Driver/Operator, or Fire Fighter. It shall also include full-time Fire Department personnel employed in any other rank created or currently existing during the term of this Agreement below the top two ranks of the Department.
- **M&C** shall mean the Meet & Confer process as defined by Subchapter C of Chapter 142 of the Texas Local Government Code.
- **Parties** shall mean the City of Allen and the Allen Firefighters Association, IAFF Local 3453.
- **TLGC** shall mean the Texas Local Government Code, as amended.

ARTICLE 2 - INTENT AND PURPOSE

This Agreement is entered into in Collin County, Texas, by and between the City of Allen, Texas, a Texas home rule municipal corporation, and the Professional Fire Fighters of Allen, IAFF Local 3453. It is the intent and purpose of this Agreement to achieve and maintain harmonious relations between the Parties, and to establish benefits, compensation, and other terms and conditions of employment for all Fire Fighters covered under this Agreement.

ARTICLE 3 - AUTHORITY, RECOGNITION, AND DURATION

Section 1. Authority

The City and the Association have voluntarily met and reached agreement on the conditions set out in this Agreement pursuant to the provisions of the TLGC, Chapter 142, Subchapter C. To the extent that this Agreement is in conflict with any other statute, executive order, local ordinance, or rule, this Agreement shall preempt such provision, as authorized by Section 142.117 of the TLGC.

Section 2. Recognition

The City recognizes the Association as the sole and exclusive bargaining agent for all covered Fire Fighters, pursuant to Section 142.103 of the TLGC.

Section 3. Duration

This Agreement shall be effective beginning October 1, 2024 (the “Commencement Date”), upon ratification by the covered Fire Fighters pursuant to a vote conducted by the Association and upon approval of the City by its City Council, in accordance with Chapter 142 of the TLGC; however, in the event the City in its sole discretion determines that midyear budget projections dictate a later commencement date, then this Agreement shall commence as of such date. This Agreement shall expire at midnight, September 30, 2028, unless extended by written, mutual agreement. The Parties may conduct a non-binding review of the terms of this Agreement at its midterm.

The City presently intends to continue this Agreement each fiscal year through its term, to pay all payments due, and to fully and promptly perform all of the obligations of the City under this Agreement. All obligations of the City shall be paid only out of current revenues, reasonably anticipated and appropriated for such purpose by the City Council, in compliance with the Texas Constitution, Article XI, Sections 5 and 7. In the event that the City cannot meet any of its funding obligations, as provided in the Texas Constitution, this entire Agreement becomes null and void.

In the event the City Council fails to appropriate funds in any fiscal year of this Agreement in an amount sufficient to meet any City obligations hereunder, this Agreement shall terminate and shall be null and void in its entirety on the first date that such funding is not met pursuant to this Agreement.

If at any time during the term of this Agreement, or any extension thereof, the electorate of the City subjects the City to a rollback election; and, as a result of such rollback election, the City suffers a reduction in revenues due to a reduction in the tax rate, the City agrees to reopen the salary and other compensation provisions of this Agreement for the purpose of renegotiating the same. If sixty (60) calendar days after these negotiations begin, no agreement has been reached, this Agreement shall terminate and be null and void in its entirety if approved by a majority vote of the City Council.

Section 4. Complete Agreement

This Agreement constitutes the entire Agreement between the City and the Association; and no party is bound by any contract, condition, stipulation, understanding or representation not contained herein. It is understood and agreed that this Agreement may only be amended in writing by mutual consent of both the City and the Association.

Section 5. Applicability

Unless otherwise specified, this Agreement applies to all Fire Fighters, as defined herein.

ARTICLE 4 - FAIR TREATMENT

Section 1. Basis of Decisions Affecting Terms or Conditions of Employment

A Fire Fighter's membership or non-membership in the Association shall not be taken into account by the City or the Association when making decisions about pay, benefits, discipline, work assignments, promotions, granting breaks, approving leave, assigning work stations, evaluating performance, or in determining any other term or condition of employment. Actions that have the intent or impact of treating an employee more or less favorably as a result of a Fire Fighter's membership or non-membership in the Association are prohibited and must be reported to the Fire Chief in a timely manner.

Section 2. Duty of Fair Representation

The Parties acknowledge and recognize the Association's responsibility, as the exclusive representative under Chapter 142, TLGC, to fairly represent all Fire Fighters in the negotiation, administration and enforcement of this Agreement. Nothing in this Agreement shall be construed to impose on the Association any obligations to non-members of the Association greater than those imposed by law.

ARTICLE 5 - MANAGEMENT RIGHTS

Section 1. Department Management

Except as provided for by State or Federal law, or Departmental Policies approved by the City Council, or as expressly modified, delegated, or abridged by the provisions of this Agreement, the City shall retain the sole, exclusive, and vested right, prerogative, power and authority to manage the Department and the workforce in the Department in all respects, including, but not limited to:

1. the right to hire, train, promote, demote, discipline, suspend, discharge, reprimand, assign, reassign, transfer, retain, or lay off employees;
2. the right to establish, eliminate, or modify the qualifications and minimum requirements for hiring, training, promotions, transfers, and job assignments and reassignments;

3. the right to establish, eliminate, classify, reclassify, or modify the number and types of positions and job classifications;
4. the right to assign and direct the work of Fire Fighters, including the scheduling and assignment and reassignment of duties, responsibilities and hours of work;
5. the right to establish, eliminate, or modify the methods, processes, means and personnel by which operations are to be carried out;
6. the right to establish, eliminate, modify, review, and enforce rules and standards governing job performance, personal conduct and appearance, uniforms and equipment, safety, training, education, attendance, discipline, and efficiency;
7. the right to establish, abolish, or modify processes and procedures for investigating and reviewing Fire Fighter conduct and complaints, relating to that conduct; and
8. the right to determine the wages, salaries, rates of pay, hours of work, and other terms of employment of the Fire Fighters and employees in the Department.

Section 2. Management Rights Retained

Except as provided for by State or Federal law, or Departmental Policies approved by the City Council, or as expressly modified, delegated, or abridged by the provisions of this Agreement, the exclusive rights and prerogatives of management not expressly mentioned or described by this article are nevertheless retained by the City and are not to be interpreted as having been diminished, waived, or ceded in any respect. If this Agreement does not, by its terms, expressly and specifically restrict, modify, or abridge a particular right or prerogative of management, then the City retains such right or prerogative of management, solely and exclusively subject to State or Federal law.

ARTICLE 6 - NO STRIKE/NO LOCKOUT

During the term of this Agreement, all members of the Allen Professional Firefighters Association Local 3453 agree that they shall not cause, counsel, or permit other members of the Association to strike, slow down, disrupt, impede, or otherwise impair the normal functions of the Allen Fire Department. The City agrees that it will not authorize, encourage, or otherwise support any lockout of any member of the Allen Fire Department.

ARTICLE 7 – SCHEDULE

Allen Fire Department shift personnel shall work 24 hours on duty, 48 hours off duty, except for inspectors, fire prevention specialists, arson investigators, 2080 employees (that is, those employees whose scheduled work week is 40 hours), and any future non-shift employees. Nothing in this Agreement shall prohibit the City and the Association from future consideration of alternate schedules.

ARTICLE 8 - COMPENSATION

Section 1. Wages

Subject to all the other provisions of this Agreement, the wages of Firefighters covered by this Agreement shall be paid during the term of this Agreement, in accordance with the wage rates, terms, and conditions described in the City's Compensation Plan Administration—Sworn Positions, as reflected in the existing Fire Pay Plan. In the event the Fire Department is authorized to create any additional sworn rank, the Parties shall meet to discuss an amendment to this Agreement specifying the salary for such rank.

Section 2. Effective Start Date of Pay Plan

Each Fire Fighter's base salary will be adjusted according to the Fire Pay Plan. This adjustment will be reflected on the first paycheck subsequent to the effective date of the Fire Pay Plan.

Section 3. Market Comparison Analysis

City staff will update the City's Market Comparison Analysis once each fiscal year. The results of each Analysis will be shared with Association leadership. Based upon such Analysis, (i) for the first two years of this Agreement, the City shall update its Pay Plan for each step and grade to reflect market plus two and one-half percent (2.5%), as outlined in Exhibit 1, attached hereto and incorporated by reference; and (ii) for the final two years of this Agreement, the City shall update its Pay Plan for each step and grade to reflect market plus three percent (3%).

Section 4. Ambulance Assignment Pay

Any Fire Fighter covered under this Agreement, who has been cleared by the Fire Chief or his/her designee, shall be entitled to Ambulance Assignment Pay when assigned to a Med Unit for a regularly scheduled, overtime, or trade time shift. Ambulance Assignment Pay shall be at a rate of \$2 per hour.

Section 5. Field Training Officer Pay

Any Fire Fighter covered under this Agreement who has been assigned as a Field Training Officer and is responsible for the training of a new Fire Fighter, as well as other Department-assigned tasks for training, will be compensated at a rate of \$250 per month.

ARTICLE 9 - CERTIFICATION PAY

Section 1. Certification Pay

Any Fire Fighter covered under this Agreement and who has completed his/her new hire probationary period shall be eligible for Certification Pay at the following compensation according to the certification held:

- TCFP Driver certification \$75/month
- TCFP Fire Officer 1 certification \$75/month
- TCFP Fire Officer 2 certification \$75/month

Section 2. Eligibility

To be eligible for certification pay, a Fire Fighter must submit a copy of his/her Texas Commission on Fire Protection (TCFP) certification verifying completion of TCFP requirements to the Fire Chief or his/her designee. Once verified, certification pay shall start being paid on the next, full pay period in which certification pay is distributed.

Section 3. Payment Rate and Schedule

Certification pay shall be made at the rates established above and in a manner that can be processed by the payroll system.

ARTICLE 10 - EDUCATION PAY

Section 1. Education Pay

Any Fire Fighter covered under this Agreement and who has completed his/her new hire probationary period shall be eligible for Education Pay according to the degree held at the following compensation, once verified by the Fire Chief or designee in writing to Human Resources:

- Associate's Degree: \$60/month
- Bachelor's Degree: \$110/month
- Master's Degree: \$150/month

Section 2. Eligibility

To be considered for Education Pay, a Fire Fighter must submit his/her diploma and/or transcript verifying completion of the degree requirements. The Fire Chief or designee shall make the final decision as to the recognition of the degree and holds the discretion to approve only those degrees obtained from a nationally and/or regionally accredited institution and recognized by the appropriate state agencies. Should there be any disagreement as to the eligibility of the degree; the Fire Chief shall make the final decision. Fire Fighters with multiple degrees shall not be eligible for Education Pay simultaneously. When a new degree is earned, Education Pay for that degree shall be effective the first, full pay period following submittal of written verification of the degree.

Section 3. Payment Rate and Schedule

Education pay shall be at the rates established in Section 1 of this article and in a manner that can be processed by the payroll system.

ARTICLE 11 - 24-HOUR PERSONAL DAY

All departmental personnel shall receive a 24-hour personal day, with pay, per calendar year.

ARTICLE 12 – HOLIDAY BUY BACK PROGRAM

Section 1. Eligibility

Any 2920 shift Fire Fighter who works on an actual holiday shall be eligible to buy back the holiday up to the maximum of 48 hours in a calendar year.

Section 2. Buy Back Maximum

Fire Fighters who work on an actual holiday are eligible to be compensated for the holiday at the regular rate of pay during the holiday's pay period up to a maximum of 48 hours in a calendar year.

Section 3. Procedures and Responsibilities

Fire Fighters who work a shift schedule on the day of a holiday will have the option to use their holiday for time off at any time during the calendar year (City and departmental management reserve the right to approve/deny time off requests based on workload or scheduling requirements) or elect to buy back up to twelve (12) hours per day during the same pay period as the holiday. No more than 48 hours may be bought back in a calendar year.

ARTICLE 13 - ASSOCIATION INPUT INTO HIRING OF NEW FIRE CHIEF

In the event the City posts the Fire Chief position for hiring, the Association may request a meeting with the City Manager to discuss the attributes and qualifications of a new Fire Chief.

ARTICLE 14 - ASSOCIATION BUSINESS LEAVE (ABL)

Section 1. ABL Pool

Once annually, during the first full pay period of the calendar year, the City shall assess from each such member of the bargaining unit an appropriate number of hours of vacation leave time, as defined herein, which shall be contributed to the Association Business Leave (ABL) Pool. Any member who does not possess the sufficient number of hours of vacation leave at the time of the request shall not be required to donate vacation leave.

At the end of each calendar year during this Agreement, all unused ABL hours shall carry over to the next calendar year. The difference between (i) the carryover hours from the previous year and (ii) 500 hours shall be assessed on a pro rata basis from each member of the bargaining unit. For purposes of clarification, if 150 hours of ABL carry over to the next calendar year, then each

member of the bargaining unit shall pay his/her pro rata amount of 350 hours. In the event that 500 or more hours of ABL carry over from one calendar year to the next, no assessment of ABL shall be made on any member of the bargaining unit.

Section 2. Use of ABL Pool Hours

AFFA Executive Board members shall be permitted time off with pay, designated as ABL, to conduct the business of the Association. ABL may be used for, but not limited to; attendance of regular and special called meetings, conventions, conferences, contract negotiations, and grievance and/or disciplinary hearings. ABL will be counted as hours worked for the calculation of overtime and FLSA compensation.

Section 3. Requests for Use

All requests for ABL shall be approved by the AFFA President and one additional Executive Board officer and submitted to the Fire Chief or his designee and shall adhere to the same scheduling guidelines as other departmental leave. ABL shall be included as one of the allotted vacation, holiday or compensatory time slots at the time of scheduling. The Fire Chief, or his/her designee, shall have final approval of ABL scheduling.

ARTICLE 15 - BULLETIN BOARDS

Section 1. Bulletin Board Space

The Association shall be permitted to maintain, at each firehouse and the Central Fire Station, one (1) bulletin board to be used exclusively for Association business. These bulletin boards shall be allowed by the City, shall be consistent with the decor of the building, and located in suitable locations easily accessible to the employees for the purpose of posting notices of interest to members of the Association.

Section 2. Maintenance of Posted Materials

The Association shall be responsible for maintaining all posted materials and shall ensure that all posted materials are compliant with any and all city policies relating to public postings. The City shall have the authority to remove any posted materials that are non-compliant with said policies.

Section 3. Indemnification of City

The Association shall defend the City and hold the City harmless against any and all claims, demands, suits or other forms of legal action that may arise out of, or by reason of, any actions taken by the City, or any employee of the City in complying with the provisions of this article. The Association and City shall jointly select and direct counsel retained for such defense, and the Association shall further assist and cooperate with the City during said defense.

ARTICLE 16 - PAYROLL DEDUCTION OF DUES

Section 1. Payroll Deduction of Dues

The City shall deduct, in a manner consistent with the current pay schedule, dues in an amount certified to be current by the Secretary/Treasurer of the Association, from the pay of those members of the bargaining unit who individually request, in writing, that such deductions be made. The total amount of deductions and a list of each member's total deduction shall be remitted by the City to the Secretary/Treasurer of the Association within fifteen (15) business days.

Section 2. Authorized Changes

The deduction amount shall remain constant until the City is notified in writing by the Secretary/Treasurer of the Association to change the amount. The Association may change the amount of the deduction with thirty (30) calendar days' notice to the City in writing. Members of the Association who wish to voluntarily initiate, or withdraw, authorization for deductions must personally sign an appropriate form as required by the City. The City shall forward to the Secretary/Treasurer of the Association all authorizations or cancellations of voluntary deductions by members of the Association.

ARTICLE 17 - SAVINGS CLAUSE, PREEMPTION, AMENDMENT AND REPEAL

Section 1. Savings Clause

If any provision of this Agreement is rendered invalid by a court of competent jurisdiction, such invalidity shall not affect any other provision of this Agreement, which shall continue to be in full force and effect for the duration of the Agreement, and the Parties shall meet as soon as possible to attempt, in good faith, to agree on a substitute provision. If the Parties are unable to agree within thirty (30) days following commencement of the initial meeting, then the matter shall be postponed until Meet and Confer negotiations are resumed. The thirty (30) day deadline may be extended by mutual agreement by the Parties. To this end, the provisions of this Agreement are severable.

Section 2. Preemption Provision

Except to the extent specifically noted in this Agreement, the provisions of this Agreement shall preempt the provisions of any state statute, Executive Order, local ordinance, or rule, which are in conflict herewith. This preemption provision is authorized by Section 142.117 of the TLGC.

Section 3. Amendment Clause

This Agreement may not be changed or altered in any manner except by mutual written agreement. The Parties agree that upon mutual agreement additional provisions may be negotiated and added as Amendments or as a Restated Agreement. Any Amendments of this Agreement shall be in writing, shall contain an effective date, and shall be dated and signed by authorized representatives of the respective Parties. All Amendments shall be ratified in the same manner as provided by state law for original ratification.

Section 4. Repeal

Notwithstanding any provision herein to the contrary, subject to the thirty (30) day negotiation period referenced in this article, this Agreement shall be deemed repealed and of no further force and effect in the event that the City, through citizen initiative, ordinance or by other means, adopts or otherwise enacts any provision granting to any Fire Fighters, as defined herein, any property right, due process or “just cause” right or interest in their employment with the City; however, the Association and the City shall have thirty (30) days following either (i) the date of canvassing of said election or (ii) the enactment of a provision referenced herein during which thirty (30) day period the Parties may attempt to negotiate a new M&C agreement or amendment(s) to this Agreement.

IN WITNESS WHEREOF, the Parties have executed this Agreement in duplicate originals by their duly authorized representatives, to be effective on the ____ day of October, 2024.

CITY OF ALLEN, TEXAS

**ALLEN FIREFIGHTERS
ASSOCIATION, IAFF LOCAL 3453**

By: Eric Ellwanger,
City Manager

By: Jake Blackshear,
President

ATTEST:

ATTEST:

Shelley George, City Secretary

Edgar Vela, Secretary/Treasurer

EXHIBIT 1

Compensation Plan Administration – Sworn Positions

(June 2014; Amended October 1, 2021)

Compensation Philosophy

The City of Allen's compensation philosophy is to provide an attractive, competitive, flexible and market-based total compensation program tied to performance and aligned with the City's goals and vision. The objective is to recruit and retain the high caliber of employees necessary to deliver sustained high performance to our customers and community.

Market Cities

Addison, Carrollton, Denton, Farmers Branch, Frisco, Garland, Lewisville, McKinney, Mesquite, Plano, Richardson.

Methodology

Data from the market cities will be used to compile and evaluate the following benchmarks for each sworn classification:

- **Minimum Pay** is the minimum base pay in the specific classification range.
- **Midpoint** is the average of each classification's Minimum Pay and Maximum Pay.
- **Maximum Pay** is the maximum base pay in the specific classification range.

Once the market city data is gathered, a table will be created listing Allen's pay range for each classification and the corresponding market city pay ranges. There will be instances where a comparison city does not have a match for a specific position. In this event, no market data will be entered for that market city. Market data collected will include:

- The minimum pay, calculated midpoint, and maximum pay annualized for each rank.
- An 'average' for the minimum pay, calculated midpoint, and maximum pay for each rank. This is a straight average with no weighting or other calculations.

The Firefighter/Paramedic classification creates some complexity when making comparisons. Allen is in the minority of communities in the way we compensate individuals who are both a firefighter and a paramedic. Most communities pay a base salary for being a firefighter and an additional assignment pay to their paramedics. Since Allen requires all firefighters to also be paramedics, we do not provide paramedic assignment pay in the firefighter classification. To

accurately compare Allen's compensation for Firefighter/Paramedic, we have to compare our pay to:

- The pay for Firefighter/Paramedic when the comparison market city combines the pay as Allen does (currently Addison and Frisco) or,
- The comparison market city's base pay for firefighter plus their paramedic assignment pay. Since some cities have a graduated paramedic pay based on length of service, we will utilize the 'average' paramedic pay for those market cities.

Some market cities require a recruit period as part of the Firefighter/Paramedic range. These will be evaluated, and the Minimum Pay may be determined to be above the market city's first step in rare instances (currently Garland).

In developing a market adjustment recommendation, we compare Allen's maximum salary in each classification to the average maximum salary. The maximum pay step will be adjusted to the average maximum salary. Each lower step in that classification will be derived by multiplying the higher step by .96, to provide for a 4% difference between the steps. This process continues downward through the steps until the result is near the comparison city minimum pay average for that classification. If the final step (minimum pay) falls below market average, the entry step (minimum pay) may be reviewed/adjusted on a case-by-case basis.

If the new average maximum salary or corresponding minimum pay step falls below the existing Allen maximum or minimum steps, the salary range will not be adjusted.

When market results from different ranks vary, the market comparison based on the straight average will be used. As a result, each rank may receive different adjustments based entirely on the market data.

Step Plan

Employees assigned to a step pay plan will be eligible to move a single step on an annual basis provided their performance warrants advancement. Performance expectations will remain high and an employee will earn the annual one-step advancement provided they meet these high expectations. Movement is via merit, not automatic. The length of time it takes an employee to move through the range will align with market further increasing Allen's competitiveness.

A single step plan is effective provided high standards of performance are clearly communicated and consistently applied. Employees meeting these high expectations move one step within their classification on their anniversary date. No employee receives an increase based solely on time in grade. An employee whose performance or behavior dropped below expectations (but not significantly enough to necessitate termination) will not be eligible for a step movement for that year.

Lump Sum Payment

Since we are retaining the requirement to perform at a high level to advance through a range, it is fitting that we also retain the ability to award a lump sum to deserving employees who have reached the top of their range. The award amount will be determined as part of the annual budget process.

Administration & Maintenance of Compensation Plans

All provisions of the City's Compensation Plan are governed by the financial condition of the City of Allen, subject to bi-annual review and authorization by the City Manager and City Council. The City's Human Resources Department reviews market data annually with bi-annual adjustments, as needed, based on funding. A combination of market surveys and internal equity are reviewed to maintain the City's Compensation Plans as a competitive tool for the City. Human Resources will work with the Fire Department and Police Department staff to review the market data and corresponding bi-annual adjustments or modifications to position ranges and/or steps that may result from these periodic local market surveys, internal studies, and/or economic conditions.

The proposed process addresses employee issues and will make our compensation and related methodology more consistent with communities with whom we compete for employees. The process will afford both policy makers and employees a clearly defined process that generates an objective and transparent market analysis. The process retains the flexibility to react to changing economic conditions while avoiding the annual uncertainty and frustrations associated with our current methods. This is an opportune time to make the necessary adjustment to our compensation practices. Doing so will more closely align Allen with our comparison cities and establish a transparent system to remain competitive going forward.

CITY COUNCIL REGULAR MEETING AGENDA COMMUNICATION
--

AGENDA DATE:	October 22, 2024
AGENDA CAPTION:	Authorize the City Manager to execute an agreement for Meet and Confer with the Allen Police Association.
STAFF RESOURCE:	Eric Strong, Deputy City Manager
PREVIOUS COUNCIL ACTION:	November 2021 - approved an agreement with Allen Police Association
STRATEGIC PLANNING GOAL:	Safe and Livable Community for All.

BACKGROUND

In 2021, the City Council approved the first-ever Meet and Confer agreements with the Allen Police Association (APA) and the Allen Fire Association (AFA). Those initial agreements were for three years and have now expired. For the past several months, staff has been working with the APA and AFA leadership to renew and update the agreements. Highlights of the agreement with APA include:

1. Currently, we conduct a market study annually, and pay for the subsequent year is based on a calculation that looks at pay ranges from 10 market cities. Once we determine that pay rate, we add 2% to capture the fact that everyone else is making pay adjustments once the new year starts that were not captured in our data. We are proposing increasing the 2% above market increase to 2.5% for the next two years and 3% for the two years following that. This will help us ensure that we aren't immediately falling behind the market once the new fiscal year begins.
2. We have added "instructor pay," in which officers who are teaching professional development courses receive a 5% pay increase during the time that they are instructing.
3. We have increased our clothing allowance for Detectives from \$100 to \$200 per month.
4. We have increased our Education Pay for an Associate's Degree (from \$50 to \$60), Bachelor's (from \$75 to \$110) and Master's (from \$110 to \$150) to better match our market city comparisons.

One of the requests that was made by both the APA and AFA that we did not come to terms with was Retiree Health Care. They have requested that we evaluate the feasibility of modifying our current policy on this. For reference, our current policy allows for an employee to retire and stay on our healthcare, but they are responsible for the full cost, which is approximately \$1,700 per month. What the associations have requested is that we look at other options for Retiree Health Care that are more affordable for the employee.

I have made it very clear to both associations that anything that puts a financial burden on the City is a non-starter. However, I have agreed to put a non-binding provision in the APA agreement that stipulates that we will form an employee committee to evaluate different options. This theoretically

could include things like allowing employees to start saving for retiree health care out of their own pocket early in their employment or other options that are not financially burdensome to the City. It is important to note that this does not obligate us to do anything with Retiree Healthcare except look at options. I have told the associations that I do not expect anything to come from this but that, in the spirit of collaboration, we will at least look at it with them and see if there is a viable option.

The APA membership was provided the opportunity to vote anonymously on the agreement and it was approved 129-0.

BUDGETARY IMPACT

\$250,000 was allocated to Meet and Confer provisions during the annual budget process, and this (combined with the AFA agreement) stays within the allocated budget amount.

STAFF RECOMMENDATION

Staff recommends approval.

MOTION

I make a motion to authorize the City Manager to execute an agreement for Meet and Confer with the Allen Police Association.

ATTACHMENT(S)

[Agreement](#)

MEET AND CONFER AGREEMENT
BETWEEN
THE CITY OF ALLEN, TEXAS,
AND
THE ALLEN POLICE ASSOCIATION

October 1, 2024

Through

September 30, 2028

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THIS AGREEMENT (as defined below) is entered into in Collin County, Texas, by and between the Allen Police Association and the City of Allen, Texas, a Texas home rule municipal corporation. The Parties agree as follows:

ARTICLE 1 – DEFINITIONS

The following terms, abbreviations, and acronyms shall have the meanings stated below whenever referenced or used throughout this Agreement:

- **Agreement** shall mean this Meet and Confer Agreement effective for the period of October 1, 2024 through September 30, 2028.
- **Association** shall mean the Allen Police Association (APA) or any other successor organization or entity duly authorized to represent Police Officers, as defined herein.
- **City** shall mean the City of Allen, Texas.
- **Market Data** shall mean the City’s Compensation Plan Administration—Sworn Positions (June 2014; Amended October 1, 2021), attached hereto as Exhibit 1.
- **M&C** shall mean the Meet and Confer process as defined by Subchapter B of Chapter 142 of the Texas Local Government Code, as amended.
- **Parties** shall mean the City of Allen and the Allen Police Association.
- **Police Officers** shall mean permanent, full-time Police Department personnel employed in the rank of Lieutenant, Sergeant, Corporal, and Police Officer. It shall also include full-time Police Department personnel employed in any other sworn rank created during the term of this Agreement below the rank of Deputy Chief.
- **TLGC** shall mean the Texas Local Government Code, as amended.

ARTICLE 2 – AUTHORITY, RECOGNITION, AND DURATION

Section 1. Authority

The City and the Association have voluntarily met and reached agreement on the conditions set out in this Agreement pursuant to the provisions of the TLGC, Chapter 142, Subchapter B. To the extent that this Agreement is in conflict with any provision in APD General Order Chapter 300, “Discipline/Complaints Against Police Personnel”; Chapter 1600, “Career Development”; Chapter 1700, “Hiring/Recruiting Process”; and Chapter 3700, “Promotional Process,” all as may hereafter be amended, the provision of the foregoing General Orders specifically shall control. Moreover, other terms and conditions of employment for City employees also shall apply to all Police Officers, except to the extent of any conflict with this Agreement.

Section 2. Recognition

The City recognizes the Association as the sole and exclusive M&C agent for all covered Police Officers, pursuant to Section 142.053 of the TLGC.

Section 3. Duration

This Agreement shall be effective beginning October 1, 2024 (the “Commencement Date”), upon ratification by the covered employees pursuant to a vote conducted by the Association and upon approval of the City by its City Council, in accordance with Chapter 142 of the TLGC; however, in the event the City Manager in his sole discretion determines that midyear budget projections dictate a later commencement date, then certain provisions contained in this Agreement shall commence as of such date, as specifically referenced in such provisions. This Agreement shall expire at midnight, September 30, 2028, unless extended by written, mutual agreement.

The City presently intends to continue this Agreement each fiscal year through its term, and to fully and promptly perform all of the obligations of the City under this Agreement. All obligations of the City shall be paid only out of current revenues, reasonably anticipated and appropriated for such purpose by the City Council, in compliance with the Texas Constitution, Article XI, Sections 5 and 7. In the event that the City cannot meet any of its funding obligations, as provided in the Texas Constitution, this entire Agreement becomes null and void.

In the event the City Council fails to appropriate funds in any fiscal year of this Agreement in an amount sufficient to meet any City obligations hereunder, this Agreement shall terminate and shall be null and void in its entirety on the first date that such funding is not met pursuant to this Agreement.

If at any time during the term of this Agreement, or any extension thereof, the electorate of the City subjects the City to a rollback election; and, as a result of such rollback election, the City suffers a reduction in revenues due to a reduction in the tax rate, the City agrees to reopen the salary and other compensation provisions of this Agreement for the purpose of renegotiating the same. If sixty (60) calendar days after these negotiations begin, no agreement has been reached, this Agreement shall terminate and be null and void in its entirety if approved by the City Council.

Section 4. Complete Agreement

This Agreement constitutes the entire Agreement between the City and Association; and no party is bound by any contract, condition, or stipulation, understanding or representation not contained herein. It is understood and agreed that this Agreement may only be amended in writing by mutual consent of the City and the Association.

Section 5. Applicability

Unless otherwise specified, this Agreement applies to all Police Officers employed by the City, excluding the Police Chief and any Assistant Police Chiefs or Deputy Police Chiefs.

ARTICLE 3 – BASE SALARY

Section 1. Wages

Subject to all the other provisions of this Agreement, the wages of the Police Officers covered by this Agreement shall be paid during the term of this Agreement, in accordance with the wage rates, terms, and conditions described in the City's Market Comparison Analysis, as reflected in the existing Police Pay Plan. In the event the Police Department is authorized to create any additional sworn rank, the Parties shall meet to discuss an amendment to this Agreement specifying the salary for such rank.

Section 2. Effective Start Date of Pay Plan

Each Police Officer's base salary will be adjusted according to the Police Pay Plan. This adjustment will be reflected on the first paycheck subsequent to the effective date of the Police Pay Plan.

Section 3. Market Comparison Analysis

City staff will update the City's Market Comparison Analysis once each fiscal year. The results of each Analysis will be shared with Association leadership. Based upon such Analysis, (i) for the first two years of this Agreement, the City shall update its Pay Plan for each step and grade to reflect market plus two and one-half percent (2.5%) as outlined in Exhibit 1, attached hereto and incorporated by reference; and (ii) for the final two years of this Agreement, the City shall update its Pay Plan for each step and grade to reflect market plus three percent (3%).

ARTICLE 4 – ADDITIONAL PAY

Section 1. Additional Pay

Any Police Officer shall be eligible for additional pay, such as certification, education or assignment pay, pursuant to the terms outlined in the City's Personnel Policies and Procedures, the Department's General Orders, and as may be mandated by the Texas Commission on Law Enforcement.

Section 2. Instructor Pay

For any Police Officer who is assigned, required or otherwise directed to provide professional instruction to Departmental personnel (and/or peace officers from other agencies), such instructor shall receive a 5% increase in pay for the hours of such instruction.

Section 3 Uniform Allowance for Detectives

Any Police Officer assigned to detective duties by the Chief of Police shall be eligible for a monthly uniform allowance of \$200.00.

ARTICLE 5 – SHIFT DIFFERENTIAL

Any Police Officer regularly scheduled to work Patrol B Shift (currently 4:00 p.m. to 4:00 a.m.), Patrol C Shift (currently 6:00 p.m. to 6:00 a.m.) and Evening Traffic Shift (currently 3:00 p.m. to 3:00 a.m.), shall be paid a shift differential at the rate of \$200 per month, on a biweekly schedule. After the effective date of this Article, any shift that is regularly scheduled to work after 2:00 p.m. and prior to 4:30 a.m. shall be entitled to the aforementioned shift differential pay.

ARTICLE 6 – EDUCATION PAY

Section 1. Education Pay

Any Police Officer covered under this Agreement and who has completed his/her new hire probationary period shall be eligible for Education Pay according to the degree held at the following compensation, once verified by the Police Chief or designee in writing to Human Resources:

- Associate's Degree: \$60/month
- Bachelor's Degree: \$110/month
- Master's Degree: \$150/month

Section 2. Eligibility

To be considered for Education Pay, a Police Officer must submit his/her diploma and/or transcript verifying completion of the degree requirements. The Police Chief or designee shall make the final decision as to the recognition of the degree and holds the discretion to approve only those degrees obtained from a nationally and/or regionally accredited institution and recognized by the appropriate state agencies. Should there be any disagreement as to the eligibility of the degree; the Police Chief shall make the final decision. Police Officers with multiple degrees shall not be eligible for Education Pay simultaneously. When a new degree is earned, Education Pay for that degree shall be effective the first, full pay period following submittal of written verification of the degree.

Section 3. Payment Rate and Schedule

Education pay shall be at the rates established in Section 1 of this Article and shall be paid on the first paycheck of every month.

ARTICLE 7 – SWAT PAY

Any Police Officer who has been duly appointed by the Police Chief to serve on the Department's SWAT team shall be paid \$100 per month while so serving, on a biweekly schedule.

ARTICLE 8 – NO STRIKE/NO LOCKOUT

During the term of this Agreement, all members of the Association agree that it shall not cause, counsel or permit its members to strike, slow down, disrupt, impeded or otherwise impair the normal functions of the Police Department. The City agrees that it will not authorize, encourage or otherwise support any lockout.

ARTICLE 9 – BULLETIN BOARDS

Section 1. Bulletin Board Space

The Association shall be permitted to maintain, at its cost, at the Allen Police Department Headquarters, 205 W. McDermott Drive, one (1) bulletin board to be used exclusively for association business. This bulletin board shall be allowed by the City, and the City and the Association mutually agree the bulletin board shall be consistent with the decor of the building, and located in a suitable location easily accessible to the employees for the purpose of posting notices of interest to members of the Association. The City will not allow the use of the bulletin board on any premises of the Police Department by any other employee organization, unless such employee organization is otherwise authorized to represent Police Officers, as defined herein.

Section 2. Indemnification of City

The Association shall defend the City and hold the City harmless against any and all claims, demands, suits or other forms of legal action that may arise out of, or by reason of, any actions taken by the City, or any employee of the City in complying with the provisions of this Article. The Association and City shall jointly select and direct counsel retained for such defense, and the Association shall further assist and cooperate with the City during said defense.

Section 3. Maintenance of Posted Materials

The Association shall be responsible for maintaining all posted materials and shall ensure that all posted materials are compliant with any and all City policies relating to public postings. The City shall have the authority to remove any posted materials that are non-compliant with said policies.

ARTICLE 10 - PAYROLL DEDUCTION OF DUES

Section 1. Payroll Deduction of Dues

The City shall deduct, in a manner consistent with the current pay schedule, dues in an amount certified to be current by the Secretary/Treasurer of the Association, from the pay of those members of the Association who individually request, in writing, that such deductions be made. The total amount of deductions and a list of each member's total deduction shall be remitted by the City to the Secretary/Treasurer of the Association within fifteen (15) business days. Such deductions may occur for Association membership, Texas Municipal Police Association (TMPA) membership, or both. The City shall not authorize payroll deductions for membership dues on behalf of any other employee organization, unless such employee organization is otherwise duly

qualified to represent Police Officers, as defined herein.

Section 2. Indemnification of City

The Association shall defend the City and hold the City harmless against any and all claims, demands, suits or other forms of legal action that may arise out of, or by reason of, any actions taken by the City, or any employee of the City in complying with the provisions of this Article. The Association and City shall jointly select and direct counsel retained for such defense, and the Association shall further assist and cooperate with the City during said defense.

Section 3. Authorized Changes

The deduction amount shall remain constant until the City is notified in writing by the Secretary/Treasurer of the Association to change the amount. The Association may change the amount of the deduction with thirty (30) calendar days' notice to the City in writing. Members of the Association who wish to voluntarily initiate, or withdraw, authorization for deductions must personally sign the appropriate form as required by the City. The City shall forward to the Secretary/Treasurer of the Association all authorizations or cancellations of voluntary deductions by members of the Association.

ARTICLE 11 – APA COMMUNICATIONS

When the Association has questions and/or issues regarding operational matters, including personnel matters, the Association shall make a reasonable effort to address those issues to departmental management. Further, in the event the City posts the Police Chief position for hiring, the Association may request a meeting with the City Manager to discuss the attributes and qualifications of a new Police Chief.

ARTICLE 12 – MANAGEMENT RIGHTS

Section 1. Department Management

Except as provided for by State or Federal law, or Departmental General Orders approved by the City Council, or as expressly modified, delegated, or abridged by the provisions of this Agreement, the City shall retain the sole, exclusive, and vested right, prerogative, power and authority to manage the Departments and the workforce in the Departments in all respects, including, but not limited to:

1. the right to hire, train, promote, demote, discipline, suspend, discharge, reprimand, assign, reassign, transfer, retain, or lay off employees;
2. the right to establish, eliminate, or modify the qualifications and minimum requirements for hiring, training, promotions, transfers, and job assignments and reassignments;
3. the right to establish, eliminate, classify, reclassify, or modify the number and types of positions and job classifications;

4. the right to assign and direct the work of Officers, including the scheduling and assignment and reassignment of duties, responsibilities and hours of work;
5. the right to establish, eliminate, or modify the methods, processes, means and personnel by which operations are to be carried out;
6. the right to establish, eliminate, modify, review, and enforce rules and standards governing job performance, personal conduct and appearance, uniforms and equipment, safety, training, education, attendance, efficiency, discipline, and hear and adjudicate grievances;
7. the right to establish, abolish, or modify processes and procedures for investigating and reviewing Officer conduct and complaints, relating to that conduct; and
8. the right to determine the wages, salaries, rates of pay, hours of work, and other terms of employment of the Officers and employees in the Department.

Section 2. Management Rights Retained

Except as provided for by State or Federal law, or Departmental General Orders approved by the City Council, or as expressly modified, delegated, or abridged by the provisions of this Agreement, the exclusive rights and prerogatives of management not expressly mentioned or described by this Article are nevertheless retained by the City and are not to be interpreted as having been diminished, waived, or ceded in any respect. If this Agreement does not, by its terms, expressly and specifically restrict, modify, or abridge a particular right or prerogative of management, then the City retains such right or prerogative of management, solely and exclusively subject to State or Federal law.

ARTICLE 13 – NOTICE TO ASSOCIATION BY POLICE CHIEF TO AMEND CERTAIN GENERAL ORDERS

Except in exigent circumstances, the Police Chief agrees not to amend APD General Order Chapter 300, “Discipline/Complaints Against Police Personnel”; Chapter 1600, “Career Development”; Chapter 1700, “Hiring/Recruiting Process”; and Chapter 3700, “Promotional Process,” without first providing the Association a written notice at least thirty (30) calendar days in advance of any proposed amendment and allowing the Association an opportunity to consult the Police Chief about any proposed amendment to the foregoing General Orders; however, the decision of the Police Chief to amend any such General Order is final.

ARTICLE 14 – RETIREE HEALTHCARE COMMITTEE

Subsequent to the execution of this Agreement, the City shall establish a Retiree Healthcare Committee to review various retiree healthcare options that may be available to retirees from the City. This Committee shall study the issue of retiree healthcare, provide suggestions to the City and the Department, along with various options (including anticipated costs associated therewith), and report back to the City. This Committee shall conclude its deliberations no later than one (1)

year after its creation, unless otherwise extended by the City.

ARTICLE 15 – SAVINGS CLAUSE, PREEMPTION, AMENDMENT AND REPEAL

Section 1. Savings Clause

If any provision of this Agreement is rendered invalid by a court of competent jurisdiction, such invalidity shall not affect any other provision of this Agreement, which shall continue to be in full force and effect for the duration of the Agreement, and the Parties shall meet as soon as possible to attempt, in good faith, to agree on a substitute provision. If the Parties are unable to agree within thirty (30) days following commencement of the initial meeting, then the matter shall be postponed until Meet and Confer negotiations are resumed. The thirty (30) day deadline may be extended by mutual agreement by the Parties. To this end, the provisions of this Agreement are severable. This Agreement may only be amended by written mutual agreement.

Section 2. Preemption Provision

The provisions of this Agreement shall preempt the provisions of any state statute, local ordinance, or rule, which are in conflict herewith, except to the extent noted in Article II of this Agreement. This preemption provision is authorized by Section 142.067 of the TLGC.

Section 3. Amendments

This Agreement may not be changed or altered in any manner except by mutual written agreement. The Parties agree that upon mutual agreement additional provisions may be negotiated and added as Amendments or as a Restated Agreement. Any Amendments of this Agreement shall be in writing, shall contain an effective date, and shall be dated and signed by authorized representatives of the respective Parties. All Amendments shall be ratified in the same manner as provided by state law for original ratification.

Section 4. Repeal

Notwithstanding any provision herein to the contrary, subject to the thirty (30) day negotiation period referenced in this Section, this Agreement shall be deemed repealed and of no further force and effect in the event that the City, through citizen initiative, ordinance or by other means, adopts or otherwise enacts any provision granting to any Police Officers, as defined herein, any property right, due process or “just cause” right or interest in their employment with the City; however, the Association and the City shall have thirty (30) days following either (i) the date of canvassing of said election or (ii) the enactment of a provision referenced herein during which thirty (30) day period the Parties may attempt to negotiate a new M&C agreement or amendment(s) to this Agreement.

IN WITNESS WHEREOF, the Parties have executed this Agreement in duplicate originals by their duly authorized representatives, to be effective on the ____ day of October, 2024.

CITY OF ALLEN, TEXAS

ALLEN POLICE ASSOCIATION

By: Eric Ellwanger,
City Manager

By: Mario Dmytrus,
President

ATTEST:

ATTEST:

Shelley George, City Secretary

Sean Fourcand, Secretary

EXHIBIT 1

Compensation Plan Administration – Sworn Positions

(June 2014; Amended October 1, 2021)

Compensation Philosophy

The City of Allen’s compensation philosophy is to provide an attractive, competitive, flexible and market- based total compensation program tied to performance and aligned with the City’s goals and vision. The objective is to recruit and retain the high caliber of employees necessary to deliver sustained high performance to our customers and community.

Market Cities

Addison, Carrollton, Denton, Farmers Branch, Frisco, Garland, Lewisville, McKinney, Mesquite, Plano, Richardson.

Methodology

Data from the market cities will be used to compile and evaluate the following benchmarks for each sworn classification:

- **Minimum Pay** is the minimum base pay in the specific classification range.
- **Midpoint** is the average of each classification’s Minimum Pay and Maximum Pay.
- **Maximum Pay** is the maximum base pay in the specific classification range.

Once the market city data is gathered, a table will be created listing Allen’s pay range for each classification and the corresponding market city pay ranges. There will be instances where a comparison city does not have a match for a specific position. In this event, no market data will be entered for that market city. Market data collected will include:

- The minimum pay, calculated midpoint, and maximum pay annualized for each rank.
- An ‘average’ for the minimum pay, calculated midpoint, and maximum pay for each rank. This is a straight average with no weighting or other calculations.

The Firefighter/Paramedic classification creates some complexity when making comparisons. Allen is in the minority of communities in the way we compensate individuals who are both a firefighter and a paramedic. Most communities pay a base salary for being a firefighter and an additional assignment pay to their paramedics. Since Allen requires all firefighters to also be paramedics, we do not provide paramedic assignment pay in the firefighter classification. To accurately compare Allen’s compensation for Firefighter/Paramedic, we have to compare our pay to:

- The pay for Firefighter/Paramedic when the comparison market city combines the pay as Allen does (currently Addison and Frisco) or,
- The comparison market city's base pay for firefighter plus their paramedic assignment pay. Since some cities have a graduated paramedic pay based on length of service, we will utilize the 'average' paramedic pay for those market cities.

Some market cities require a recruit period as part of the Firefighter/Paramedic range. These will be evaluated, and the Minimum Pay may be determined to be above the market city's first step in rare instances (currently Garland).

In developing a market adjustment recommendation, we compare Allen's maximum salary in each classification to the average maximum salary. The maximum pay step will be adjusted to the average maximum salary. Each lower step in that classification will be derived by multiplying the higher step by .96, to provide for a 4% difference between the steps. This process continues downward through the steps until the result is near the comparison city minimum pay average for that classification. If the final step (minimum pay) falls below market average, the entry step (minimum pay) may be reviewed/adjusted on a case-by-case basis.

If the new average maximum salary or corresponding minimum pay step falls below the existing Allen maximum or minimum steps, the salary range will not be adjusted.

When market results from different ranks vary, the market comparison based on the straight average will be used. As a result, each rank may receive different adjustments based entirely on the market data.

Step Plan

Employees assigned to a step pay plan will be eligible to move a single step on an annual basis provided their performance warrants advancement. Performance expectations will remain high and an employee will earn the annual one-step advancement provided they meet these high expectations. Movement is via merit, not automatic. The length of time it takes an employee to move through the range will align with market further increasing Allen's competitiveness. This entails the reduction of the number of steps in the Firefighter pay range to six steps and the Police Officer pay range to seven steps with a 4% differential between the steps.

A single step plan is effective provided high standards of performance are clearly communicated and consistently applied. Employees meeting these high expectations move one step within their classification on their anniversary date. No employee receives an increase based solely on time in grade. An employee whose performance or behavior dropped below expectations (but not significantly enough to necessitate termination) will not be eligible for a step movement for that year.

Lump Sum Payment

Since we are retaining the requirement to perform at a high level to advance through a range, it is fitting that we also retain the ability to award a lump sum to deserving employees who have reached the top of their range. The award amount will be determined as part of the annual budget process.

Administration & Maintenance of Compensation Plans

All provisions of the City's Compensation Plan are governed by the financial condition of the City of Allen, subject to bi-annual review and authorization by the City Manager and City Council. The City's Human Resources Department reviews market data annually with bi-annual adjustments, as needed, based on funding. A combination of market surveys and internal equity are reviewed to maintain the City's Compensation Plans as a competitive tool for the City. Human Resources will work with the Fire Department and Police Department staff to review the market data and corresponding bi-annual adjustments or modifications to position ranges and/or steps that may result from these periodic local market surveys, internal studies, and/or economic conditions.

The proposed process addresses employee issues and will make our compensation and related methodology more consistent with communities with whom we compete for employees. The process will afford both policy makers and employees a clearly defined process that generates an objective and transparent market analysis. The process retains the flexibility to react to changing economic conditions while avoiding the annual uncertainty and frustrations associated with our current methods. This is an opportune time to make the necessary adjustment to our compensation practices. Doing so will more closely align Allen with our comparison cities and establish a transparent system to remain competitive going forward.